

Warsaw, March 17, 2025

Decision

DKN.5131.1.2025

Based on Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2024, item 572) in connection with Article 7(1), Article 60, Article 101, Article 102(1)(1) and (3), and Article 103 of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781) as well as Article 57(1)(a) and (h), Article 58(2)(i), Article 83(1-3), Article 83(5)(a) in connection with Article 5(1)(a) and Article 6(1) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (Official Journal of the EU L 119 of 04.05.2016, p. 1, Official Journal of the EU L 127 of 23.05.2018, p. 2, and Official Journal of the EU L 74 of 04.03.2021, p. 35), hereinafter referred to as the "Regulation 2016/679", and also in connection with Article 170 and Article 153 of the Act of August 30, 2002, on Proceedings Before Administrative Courts (Journal of Laws of 2024, item 935, as amended), after conducting an ex officio administrative proceeding regarding the violation of personal data protection regulations by the Minister of Digital Affairs (ul. Królewska 27, 00-060 Warsaw) and Poczta Polska S.A. based in Warsaw (ul. Rodziny Hiszpańskich 8, 00-940 Warsaw), the President of the Personal Data Protection Office,

1) stating the violation by the Minister of Digital Affairs (ul. Królewska 27, 00-060 Warsaw) of Article 6(1) of Regulation 2016/679, consisting of unlawful processing of personal data collected in the register of the Universal Electronic System for Registration of the Population, by providing them on April 22, 2020, without a legal basis in the scope of: PESEL number, first names, surnames, last current address of permanent residence (and if absent: last outdated), address of temporary residence (along with the declared duration of this stay), as well as currently registered temporary departure outside the country, of all adults on May 10, 2020, who on the date of data generation had registered Polish citizenship in the aforementioned register, were listed as living persons, and for whom the indicated country of residence was Poland, to Poczta Polska S.A. based in Warsaw (ul. Rodziny Hiszpańskich 8, 00-940 Warsaw), which resulted in a violation of the principle of lawfulness of processing specified in Article 5(1)(a) of Regulation 2016/679, imposes on the Minister of Digital Affairs (ul. Królewska 27, 00-060 Warsaw) an administrative fine in the amount of 100,000 PLN (in words: one hundred thousand zlotys),

2) stating the violation by Poczta Polska S.A. based in Warsaw (ul. Rodziny Hiszpańskich 8, 00-940 Warsaw) of Article 6(1) of Regulation 2016/679, consisting of processing without a legal basis of the personal data provided to this company on April 22, 2020, by the Minister of Digital Affairs (ul. Królewska 27, 00-060 Warsaw), collected in the register of the Universal Electronic System for Registration of the Population, in the scope of: PESEL number, first names, surnames, last current address of permanent residence (and if absent: last outdated), address of temporary residence (along with the declared duration of this stay), as well as currently registered temporary departure outside the country, of all adults on May 10, 2020, who on the date of data generation had registered Polish citizenship in the aforementioned register, were listed as living persons, and for whom the indicated country of residence was Poland, which resulted in a violation of the principle of lawfulness of processing specified in Article 5(1)(a) of Regulation 2016/679, imposes on Poczta Polska S.A. based in Warsaw (ul. Rodziny Hiszpańskich 8, 00-940 Warsaw) an administrative fine in the amount of 27,124,816 PLN (in words: twenty-seven million one hundred twenty-four thousand eight hundred sixteen zlotys).

Establishing that the analyzed process of personal data processing by the Minister of Digital Affairs and Poczta Polska S.A. based in Warsaw was carried out despite the lack of a legal basis under Article 6(1) of Regulation 2016/679 is associated with the finding that the indicated administrators also violated Article 5(1)(a) of the aforementioned legal act – breaching the principle of lawfulness, fairness, and transparency expressed therein.

Justification

1. By the decision of April 16, 2020, ((...)) the President of the Council of Ministers instructed Poczta Polska S.A. based in Warsaw (ul. Rodziny Hiszpańskich 8, 00-940 Warsaw), hereinafter referred to as the "Company", to carry out actions aimed at undertaking and implementing necessary activities to prepare for the conduct of the Presidential elections in the Republic of Poland in 2020 in a postal mode, which was related to the necessity to counteract COVID-19, particularly by preparing the organizational structure, ensuring the necessary infrastructure, and acquiring the necessary material and human resources. Subsequently, on April 22, 2020, the Minister of Digital Affairs (ul. Królewska 27, 00-060 Warsaw), hereinafter referred to as the "Minister", provided the Company, based on its application submitted on April 20, 2020, with personal data collected in the register.

Universal Electronic Population Registration System (hereinafter referred to as: "PESEL register") in the scope of: PESEL number, first names, surnames, last current address of permanent residence (and if absent: last outdated address), address of temporary residence (along with the declared duration of this residence), as well as currently registered temporary departure outside the country, of all adults as of May 10, 2020, who on the date of data generation had registered Polish citizenship in the aforementioned register, were listed as living persons, and for whom the indicated country of residence was Poland (approximately 30 million people[1]). This occurred, as indicated in the aforementioned application, in connection with the tasks related to the organization of the elections for the President of the Republic of Poland. These elections were to take place on May 10, 2020 – at a time when efforts were being made to limit the rapid development of the COVID-19 epidemic. The aforementioned actions became the subject of much discussion, including in the media, and raised numerous controversies and concerns among parts of the public opinion.

2. Following the disclosure of this personal data, 178 complaints regarding irregularities in the processing of personal data by the Minister or by the Company were submitted to the President of the Personal Data Protection Office (hereinafter referred to as: "President of UODO" or "supervisory authority"). However, the situation concerned not only many individuals whose data was disclosed as a result of the above actions – it also became a reason for decisive actions by the Commissioner for Human Rights (hereinafter: "RPO"), who already on April 29, 2020, filed a complaint with the Provincial Administrative Court in Warsaw (hereinafter: "WSA") against the aforementioned decision of the President of the Council of Ministers regarding the order to the Company to carry out actions in the scope of counteracting COVID-19 aimed at preparing and conducting the elections for the President of the Republic of Poland in 2020 by postal voting. Shortly thereafter, on May 15, 2020, the RPO filed a complaint with the WSA regarding the action of the Minister from April 22, 2020, consisting of the above-described disclosure of personal data from the PESEL register to the Company. Following the complaints submitted by the Commissioner for Human Rights, the WSA and the Supreme Administrative Court (hereinafter: "NSA") issued judgments (described in points 11 and 12 of this decision), as a result of which it was legally established: - the invalidity of the decision of the President of the Council of Ministers issued on April 16, 2020, reference: (...) (described in point 4 below), which initiated the submission of the aforementioned application by the Company, - the ineffectiveness of the Minister's action consisting of the aforementioned disclosure of personal data from the PESEL register to the Company.

In these judgments, both the factual and legal state were established, which the President of UODO accepted as binding, taking into account, among other things, the content of Article 170 in connection with Article 153 of the Act on Proceedings Before Administrative Courts[2]. This obviously had to influence the actions taken so far by the supervisory authority. Therefore, it withdrew, among other things, the cassation complaint it had submitted against the judgment of the WSA of April 23, 2021, reference II SA/Wa 1750/20, which annulled the decision of the President of UODO of July 7, 2020, reference: (...), refusing to initiate proceedings in the matter brought to the authority by an individual complaint of a natural person regarding irregularities in the processing of her personal data by the Minister and the Company in connection with the organization of "postal elections." The NSA's decision (reference III OSK 6133/21) to discontinue the cassation proceedings due to the withdrawal of

the aforementioned cassation complaint by the President of UODO was issued on April 9, 2024, while the last judgments of the WSA and NSA, referred to in points 11 and 12 of this decision, were issued on June 28, 2024. The supervisory authority was then taking further actions in individual cases and subsequently deemed it necessary to carry out the actions referred to in point 3 below.

3. Taking into account, among other things, the significant number of complaints mentioned in point 2 above, as well as the legally binding judgments issued by the WSA and NSA (described in points 11 and 12 of this decision, which in a binding manner influenced the previous legal assessment of the situation described in point 1 above), the President of UODO deemed it necessary to initiate ex officio (letter of January 10, 2025, reference: (...)) administrative proceedings regarding the possibility of violation by the Minister and the Company of the obligations arising from the provisions of Article 5(1)(a) and Article 6(1) of Regulation 2016/679, in connection with the organization of the elections for the President of the Republic of Poland in 2020 (reference: (...)). In doing so, he also took into account the content of Article 189g § 1 of the Code of Administrative Procedure[3].

In conducting the administrative proceedings initiated in this matter, the President of UODO was bound (as indicated above, in accordance with Articles 170 and 153 of the Act on Proceedings Before Administrative Courts) by the findings of the WSA and NSA contained in the aforementioned judgments. In the legal state shaped by these rulings, the supervisory authority issued a decision taking into account the binding factual findings that underpinned the issuance of these judgments and the legal findings and assessments of the courts contained in these judgments (referred to in point 2 above).

As a result of the conducted administrative proceedings, the President of UODO established the following factual state:

4. By decision of April 16, 2020 (reference: (...)), the President of the Council of Ministers, invoking Article 11(2) in connection with Article 11(2a), (3) of the Act of March 2, 2020, on special solutions related to preventing, counteracting, and combating COVID-19, other infectious diseases, and the crisis situations caused by them (hereinafter referred to as: "COVID-19 Act") in connection with Article 104 of the Code of Administrative Procedure, ordered the Company to carry out actions consisting of undertaking and implementing necessary activities aimed at preparing for conducting the elections for the President of the Republic of Poland in 2020 by postal voting, which was related to the necessity of counteracting...

COVID-19, in particular through the preparation of the organizational structure, ensuring the necessary infrastructure, and acquiring the required material and personnel resources. In this decision, hereinafter referred to as "PRM Decision of April 16, 2020," it was also noted that the implementation of the order aims to counteract COVID-19 by preventing the spread of the SARS-CoV-2 virus as a result of gatherings of people in large groups following their exercise of the active right to vote in the presidential elections in the form of visiting the polling station. (A copy of this decision is in the case files).

5. Following the issuance of the PRM Decision of April 16, 2020, the Company submitted a request on April 20, 2020, to the Minister of Digitization for "Request for data from the PESEL register" (reference: (...)) regarding the matters mentioned below. In this request, hereinafter referred to as "Company's Request of April 20, 2020," the Company, citing Article 99 of the Act of April 16, 2020, on specific support instruments in connection with the spread of the SARS-CoV-2 virus (hereinafter referred to as "u.s.i.w.") and in connection with the implementation of tasks related to the organization of the presidential elections of the Republic of Poland, requested the electronic transmission of data from the PESEL register in the following scope: 1) addresses: - the last (current or last outdated if the person does not have a current one) permanent residence address: a) TERYT (7-digit TERYT code of the municipality), b) SIMC – locality identifier, c) ULIC – street identifier, d) postal code, e) voivodeship (name), f) county (name), g) municipality (name). For cities with districts, the name of the district will be included in the name of the municipality, h) locality, i) street, j) house number, k) apartment number, l) address validity indicator; - temporary residence address and the date of expiration of the declared duration of stay – according to the scheme indicated in the previous bullet points a) – l); It was also

noted that this data does not include outdated addresses (i.e., those that have a date of deregistration from temporary residence); - date of departure outside the borders of the Republic of Poland lasting longer than 6 months – if the departure is current, i.e., does not have a return date or the return date is in the future as of the date of data generation; - date of return from a trip outside the borders of the Republic of Poland lasting longer than 6 months – if it is a future date on the day of data generation; 2) Citizen data: a) First name, b) Middle name, c) Last name, d) PESEL number.

In this request, it was also noted that the transmission of the data mentioned above concerns only persons of legal age on May 10, 2020, who, as of the date of data generation, have registered Polish citizenship in the PESEL register and are listed as living persons for whom Poland was indicated as the country of residence. It was also explained that this data is necessary and will be used solely for the purpose of carrying out tasks related to the organization of the presidential elections of the Republic of Poland (the request mentions building the most up-to-date database of voters' addresses for the delivery of election packages), and after achieving this purpose, it will be deleted from the operator's IT system. (A copy of the Company's letter to the Minister dated April 20, 2020, is in the case files).

6. The Company (being the operator designated to provide universal services for the years 2016-2025[4]), obtained from the Minister, as a result of the aforementioned request, personal data contained in the PESEL register. The transmission of this data to the Company (on a data carrier: DVD) in connection with the organization of the presidential elections of the Republic of Poland in 2020 took place on April 22, 2020. (A copy of the Company's letter to the Personal Data Protection Office, hereinafter referred to as "UODO," dated September 12, 2024, is in the case files).

7. The Minister stated that he did not provide data for all Polish citizens "(...) but only - living Polish citizens who on May 10, 2020, were of legal age and whose country of residence is Poland." He indicated that the provision was made based on Article 99 of the u.s.i.w. He also emphasized that according to Article 6(1)(c) of Regulation 2016/679, the processing of personal data is lawful when it is necessary for the fulfillment of a legal obligation imposed on the administrator. Such an obligation for the Minister, as the administrator of data processed in the PESEL register, arose in his opinion from the aforementioned Article 99 of the u.s.i.w. (A copy of the Minister's letter to UODO dated November 21, 2024, is in the case files).

8. The Company also indicated that in connection with the preparation for participation in the organization of the presidential elections in the Republic of Poland scheduled for 2020, it obtained data from the PESEL register for the purpose of carrying out these tasks, based on Article 99 of the u.s.i.w. and the PRM Decision of April 16, 2020. The Company noted that the Minister provided it with data of persons of legal age on May 10, 2020, who, as of the date of data generation, had registered Polish citizenship in the PESEL register, were listed as living persons, and for whom Poland was indicated as the country of residence. (A copy of the Company's letter to UODO dated August 19, 2024, is in the case files).

9. In connection with the expiration of the day set by the Marshal of the Sejm of the Republic of Poland for the presidential elections, i.e., May 10, 2020, the Minister requested the Company on May 12, 2020, to promptly provide the Ministry of Digitization with a statement made by a person authorized in accordance with the principles of representation of the Company regarding the permanent deletion of the data transmitted to the Company on the DVD on April 22, 2020, and all copies of the data. (A copy of the letter dated May 12, 2020, reference: (...) is in the case files).

10. In connection with the cessation of the purpose of processing personal data (i.e., the Company's preparation for the presidential elections in the Republic of Poland scheduled for 2020, which were to take place on May 10, 2020), the Company permanently deleted all data. personal data obtained from the PESEL register (provided by the Minister). The removal took place between May 15 and May 22, 2020 (Copy of the Company's letter to UODO dated August 19, 2024 – in the case files).

11. The Administrative Court (WSA) in its judgment of September 15, 2020 (case file VII SA/Wa

992/20), hereinafter referred to as: "WSA Judgment of September 15, 2020," issued in the case of a complaint, among others, from the Commissioner for Human Rights against the Decision of the Prime Minister (PRM) dated April 16, 2020, declared the invalidity of this decision (see: (...)). The cassation complaints filed in this matter were dismissed by the Supreme Administrative Court (NSA) in a judgment of June 28, 2024 (case file III OSK 4524/21), as a result of which the aforementioned WSA judgment of September 15, 2020, became final (see: (...)).

12. The WSA in its judgment of February 26, 2021 (case file IV SA/Wa 1817/20), hereinafter referred to as: "WSA Judgment of February 26, 2021," in the case of a complaint from the Commissioner for Human Rights against the action of the Minister of Digital Affairs, declared the ineffectiveness of the Minister's action of April 22, 2020, consisting of providing the Company with personal data from the PESEL register concerning living Polish citizens who reached adulthood on May 10, 2020, and whose country of residence is Poland (see: (...)). The cassation complaint filed in this matter was dismissed by the NSA in a judgment of March 13, 2024 (case file II OSK 1630/21), as a result of which the WSA judgment of February 26, 2021, became final (see: (...)). In this last judgment, the NSA also indicated that "On April 22, 2020, the Minister of Digital Affairs provided the company (...) with personal data from the PESEL register maintained by the Minister. The provided data included: 1) PESEL number, 2) first name(s), 3) surname, and 4) depending on what data the person has registered in the PESEL register - the current address of permanent residence, and in the absence of such, the last address of permanent residence, as well as the address of temporary residence. Information about registration and deregistration dates was not provided; however, in the case of the address of temporary residence, information about the expected date of stay at the temporary address was provided. Additionally, information was provided on whether the person currently has a registered temporary departure outside the country (without indicating the country of departure)"[5].

In this factual state, after reviewing all the evidence collected in the case, the President of UODO considered the following:

13. According to Article 34(1) and (2) of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781, hereinafter: "u.o.d.o."), the President of UODO is the competent authority in matters of data protection and the supervisory authority within the meaning of Regulation 2016/679. Pursuant to Article 57(1)(a) and (h) of Regulation 2016/679, without prejudice to other tasks specified under this regulation, each supervisory authority in its territory monitors and enforces the application of this regulation and conducts proceedings regarding the application of this regulation, including based on information received from another supervisory authority or another public authority. The corrective powers of the supervisory authority in the event of a violation of the provisions of Regulation 2016/679 are established by Article 58(2)(a) to (j) of Regulation 2016/679. This provision provides, among other things, for the application, in addition to or instead of the measures referred to in this paragraph, of an administrative fine pursuant to Article 83, depending on the circumstances of the specific case (point i).

14. According to Article 1(2)(5) of the u.o.d.o., this act specifies the procedure for violations of the provisions on the protection of personal data. Pursuant to Article 60 of the u.o.d.o., the President of UODO conducts proceedings regarding violations of the provisions on the protection of personal data.

15. It follows from the above that the proceedings conducted by the President of UODO aim to determine whether there has been a violation of the provisions on the protection of personal data, and in the event of such a violation, to exercise corrective powers. The assessment made by the President of UODO serves to examine the legitimacy of his use of corrective powers as a supervisory authority, as referred to in Article 58(2) of Regulation 2016/679.

I. Legal basis for the processing of personal data.

16. Article 5 of Regulation 2016/679 specifies the principles regarding the processing of personal data that must be respected by all administrators, i.e., entities that independently or jointly with others determine the purposes and means of processing personal data. According to Article 5(1)(a) of Regulation 2016/679, personal data must be processed lawfully, fairly, and in a transparent manner for

the data subject ("lawfulness, fairness, and transparency"). Compliance with the aforementioned principle is necessary for the proper implementation of the accountability principle arising from Article 5(2) of Regulation 2016/679.

17. According to Article 6(1) of Regulation 2016/679, the processing of personal data is lawful only if – and to the extent that – at least one of the following conditions is met: a) the data subject has given consent to the processing of their personal data for one or more specific purposes; b) processing is necessary for the performance of a contract to which the data subject is a party or to take steps at the request of the data subject prior to entering into a contract; c) processing is necessary for compliance with a legal obligation to which the controller is subject; d) processing is necessary to protect the vital interests of the data subject or another natural person; e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller; f) processing is necessary for the purposes of legitimate interests pursued by the controller or by a third party, except...

situations in which the interests or fundamental rights and freedoms of the data subject, requiring the protection of personal data, take precedence over these interests, particularly when the data subject is a child. It should be noted that the provision of Article 6(1)(f) of Regulation 2016/679 does not apply to the processing of personal data by public authorities in the course of performing their tasks.

18. The catalogue of legal grounds for the processing of personal data listed in Article 6(1) of Regulation 2016/679 is closed. Each of the grounds legitimizing the processing of personal data is autonomous and independent. They are also equal to each other, which means that for the legality of the data processing process, it is sufficient to meet one of them.

19. According to Article 6(3) of Regulation 2016/679, the basis for processing referred to in Article 6(1)(c) and (e) must be specified: a) in Union law; or b) in the law of the Member State to which the controller is subject. Furthermore, this provision indicates that the purpose of processing must be specified in this legal basis or, in the case of processing referred to in Article 6(1)(e) – it must be necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller. The legal basis may contain specific provisions adapting the application of the provisions of this regulation, including: general conditions for lawful processing by the controller; the type of data subject to processing; the persons whose data are concerned; entities to whom personal data may be disclosed; the purposes for which they may be disclosed; limitations of purpose; retention periods; and processing operations and procedures, including measures ensuring compliance with the law and the reliability of processing, including in other specific situations related to processing, referred to in Chapter IX. Union law or the law of the Member State must serve the realization of a purpose in the public interest and be proportional to the designated, legally justified purpose.

20. In this case, the supervisory authority is obliged to analyze the legal bases resulting from the laws indicated in the Decision of the PRM of April 16, 2020, and in the Company's Application of April 20, 2020, for the electronic transfer of data from the PESEL register, taking into account the binding nature of the authority by the judgments indicated in points 11 and 12 of this decision, resulting from the principle of binding effect of a final court judgment expressed in Article 170 of the Administrative Procedure Code. According to the judgment of the Provincial Administrative Court in Gdańsk of March 27, 2024 (case reference I SA/Gd 1109/23), "The essence of the binding force of a final court judgment expressed in Article 170 of the Administrative Procedure Code is that state authorities and courts must take into account the existence and content of a final court judgment and the overall legal consequences arising from it. Although the authority of *res judicata* encompasses the operative part of the judgment, considering that the essence of judicial review is expressed in legal assessment, which is articulated in the reasoning, the scope of the authority of *res judicata* in the sense of Article 171 of the Administrative Procedure Code is indicated by the motives. In a situation where there is a binding final court judgment and the factual findings that underlie it, it is inadmissible in another case with a different subject matter to make findings and legal assessments that are inconsistent with the matter that has been finally adjudicated. The ruling contained in the final judgment creates a legal state as it

results from it. Courts adjudicating between the same parties in another dispute must assume that a given legal issue is shaped as accepted in the final, earlier judgment (cf. the judgment of the NSA of October 28, 2022, case reference III FSK 778/22; the cited judgments are available in the Central Database of Administrative Court Judgments at orzeczenia.nsa.gov.pl, hereinafter referred to as "CBOSA"). In the jurisprudence of the Supreme Administrative Court, there is also the view that although the binding effect of a final judgment only binds in the given case, it may relate to other proceedings to the extent that a specific legal issue resolved in that judgment is significant for the resolution in another case as a preliminary issue or as a further element shaping the process of applying the law by the court (see judgments of the NSA of May 31, 2016, case reference II OSK 2295/14, of November 24, 2020, case reference II FSK 1014/19, CBOSA)." Furthermore, in the judgment of November 14, 2023, case reference III OSK 2623/21, the Supreme Administrative Court indicated that "The allegation of violation of Article 170 of the Administrative Procedure Code is completely unfounded, as the President of the UODO was bound, in accordance with the content of this provision, by the judgments issued in the case of the disclosure of public information, in the form of attachments to the applications of candidates for members of the National Council of the Judiciary, including lists of judges supporting the applications, by the judgments: WSA in Warsaw of August 29, 2018, case reference II SA/Wa 484/18 and NSA of June 28, 2019, case reference I OSK 4282/18. It should be recalled that according to Article 170 of the Administrative Procedure Code, "a final judgment binds not only the parties and the court that issued it but also other courts and other state authorities, and in cases provided for by law, also other persons." It is noted that "the ratio legis of Article 170 of the Administrative Procedure Code is that it guarantees the coherence and logic of the actions of state authorities, preventing the functioning in legal circulation of decisions that are irreconcilable within the entire system of exercising power (judgment of the NSA of May 19, 1999, IV SA 2543/98). The view of the doctrine should be shared that "although the binding effect of a final judgment only binds in the given case, it may relate to other proceedings to the extent that in that judgment."

the legal issue in question has been resolved, which is significant for the resolution of another case as a preliminary issue, or as a further element shaping the process of applying the law by the court" (B. Dauter (in:) A. Kabał, M. Niezgódka-Medek, B. Dauter, Law on Proceedings Before Administrative Courts. Commentary, 2nd ed., LEX/el. 2021, art. 170). Article 170 of the Administrative Procedure Code (p.p.s.a.) has an organizing character and means that in a case where a final ruling of an administrative court has been issued, the entities affected by that ruling are obliged to recognize that the legal issue constituting the content of the court's decision is shaped as stated therein. It is therefore inadmissible for any entity other than those strictly specified in sections VII and VIIa of the p.p.s.a. to challenge or change the content of the ruling. The binding force of a final ruling of an administrative court is defined by the subject matter boundaries of the case being examined, which "according to the rules governing administrative court proceedings are determined by the actual scope of the decision contained in that judgment" (T. Woś (in:) H. Knysiak-Sudyka, M. Romańska, T. Woś, Law on Proceedings Before Administrative Courts. Commentary, 6th ed., Warsaw 2016, art. 171), and thus the scope of the ruling concerning the assessment of the legality of the action or inaction of a public administration body defines the subject matter boundaries of the case. On the other hand, the subject matter boundaries of the binding scope of the ruling of the administrative court are defined by Article 170 of the p.p.s.a. as "the essence of the binding force of a final ruling of the court as specified in the commented provision is expressed in that state authorities must take into account the existence and content of the final ruling of the court and the totality of legal effects resulting from it" (Law on Proceedings Before Administrative Courts. Commentary, ed. R. Hauser, M. Wierzbowski, Legalis 2021, art. 170, thesis 1). There is therefore no doubt that both the courts and public administration bodies are obliged to execute and respect the final judgment of the administrative court. Furthermore, in the judgment of November 7, 2019, file no. II SA/Lu 392/19, the Provincial Administrative Court in Lublin indicated that "Article 153 of the p.p.s.a. expresses the principle of the binding nature of the court and the authority whose action or inaction was the subject of the appeal, to the legal assessment expressed in the court's ruling. The legal assessment referred to in this provision may concern both the interpretation of the law itself and the lack of clarification in the controlled administrative proceedings of

significant circumstances of the factual state. In turn, Article 170 of the p.p.s.a. provides that a final ruling binds not only the parties and the court that issued it but also other courts and other state authorities, and in cases provided for by law, also other persons. The binding nature of the legal assessment referred to in Article 153 of the p.p.s.a. and Article 170 of the p.p.s.a. means that such a ruling has significant importance for administrative and administrative court proceedings conducted after its issuance, concerning related subject matters."

21. The decision of the Prime Minister (PRM) of April 16, 2020, was issued, among other things, citing Article 11(2) in conjunction with Article 11(2a), (3) of the COVID-19 Act. Article 11(2) of the aforementioned Act, in the wording in force on the date of issuance of this decision, stated that "The Prime Minister, on his own initiative or at the request of the voivode, after informing the minister responsible for economic affairs, may, in connection with counteracting COVID-19, issue orders applicable to entities other than those mentioned in paragraph 1, legal persons and organizational units without legal personality, as well as entrepreneurs. The orders are issued in the form of an administrative decision, are subject to immediate execution upon delivery or announcement, and do not require justification." In the PRM Decision of April 16, 2020, as previously indicated, the Prime Minister ordered the Company to "carry out actions aimed at counteracting COVID-19, consisting of taking and implementing necessary steps to prepare for the conduct of the elections for the President of the Republic of Poland in 2020 in a postal mode, particularly by preparing the organizational structure, ensuring the necessary infrastructure, and acquiring the necessary material and personnel resources."

22. The consequence of issuing the aforementioned PRM Decision of April 16, 2020, was the submission to the Minister of Digital Affairs of the Company's application dated April 20, 2020, for the transfer of data from the PESEL register in connection with the implementation of tasks related to the organization of the elections for the President of the Republic of Poland in electronic form, as indicated in point 5 of this decision. In this application, the Company referred to Article 99 of the Act on the Election of the President of the Republic of Poland. This provision, in the wording on the date of submission of the Company's application on April 20, 2020, stipulated that "The operator designated within the meaning of the Act of November 23, 2012 - Postal Law, after submitting an application in electronic form, receives data from the PESEL register or from another list or register at the disposal of the public administration authority, if this data is necessary for the implementation of tasks related to the organization of the elections for the President of the Republic of Poland or for the performance of other obligations imposed by government administration authorities. The data referred to in the first sentence shall be provided to the designated operator in electronic form within no more than 2 working days from the date of receipt of the application. The designated operator is entitled to process the data solely for the purpose for which it received this data."

23. The Minister, in implementing the aforementioned application, made available to the Company (which, as previously indicated in point 6 of this decision, is the designated operator for providing universal services for the years 2016-2025) the personal data contained in the PESEL register on April 22, 2020. This was done by issuing an information carrier, i.e., a DVD. As evidenced by the collected evidence...

in the matter, in light of the existence in legal circulation of the aforementioned judgments, i.e. the aforementioned judgment of the WSA of September 15, 2020 (case file VII SA/Wa 992/20) declaring the invalidity of the aforementioned decision of the Prime Minister of April 16, 2020, upheld by the aforementioned judgment of the NSA of June 28, 2024 (case file III OSK 4524/21) and the aforementioned judgment of the WSA of February 26, 2021 (case file IV SA/Wa 1817/20), declaring the ineffectiveness of the action of April 22, 2020, consisting of providing the company Poczta Polska S.A. with personal data from the PESEL register concerning living Polish citizens who reached adulthood on May 10, 2020, and whose country of residence is Poland, as issued in violation of the legal provisions applicable at the time of its execution, upheld by the aforementioned judgment of the NSA of March 13, 2024 (case file II OSK 1630/21), in the opinion of the President of UODO, the Minister of Digital Affairs did not have any of the grounds from Article 6(1) of Regulation 2016/679 to

provide personal data from the PESEL register to the Company for the purpose of organizing general elections for the President of the Republic of Poland scheduled for 2020, and the Company did not have any of the grounds from Article 6(1) of Regulation 2016/679 to process the aforementioned data for the above purpose. In the context of the declaration of invalidity of the decision of the Prime Minister of April 16, 2020, imposing an obligation on Poczta Polska S.A. as referred to in Article 99 of the Act on the State Electoral Register (u.s.i.w.) and the declaration of the ineffectiveness of the action of providing personal data from the PESEL register by the Minister of Digital Affairs to the Company, as an action violating legal provisions, it cannot be considered that there was a legal basis for the Minister of Digital Affairs to provide these data to the postal operator and for Poczta Polska S.A. to obtain personal data based on Article 6(1)(c) of Regulation 2016/679 in connection with Article 99 of the Act on the State Electoral Register. At the time of providing the aforementioned personal data, as stated in the cited judgments of the WSA and NSA, there was no legal provision allowing the designated operator to perform tasks related to the organization of the elections for the President of the Republic of Poland, for which processing data from the PESEL register would be necessary. It is worth citing the justification of the aforementioned judgment of the NSA of March 13, 2024 (case file II OSK 1630/21), in which the NSA particularly stated that: "In national law, the principles of providing data from the PESEL register and resident registers are regulated in the provisions of the Act on Population Registration (Article 45 et seq.). Data from this register is provided to entities listed in Article 46(1), but only to the extent necessary to fulfill their statutory tasks; this connection must arise from the necessity of having personal data covered by the register to achieve the goal set by the content of the task (mandatory provision). Data from the PESEL register may also be provided to other entities specified in Article 46(2), but only after fulfilling all requirements contained in that provision (optional provision). Article 99 of the 2020 Act [u.s.i.w.], covered by cassation grounds, is undoubtedly a special provision in relation to the presented general regulation concerning the provision of data from the PESEL register. (...) P. S.A. [the Company] in its application for the provision of data from the PESEL register, invoking the entitlement arising from Article 99 of the Act, indicated that "the data is needed and will be used solely for the purpose of fulfilling tasks related to the organization of the elections for the President of the Republic of Poland." The Minister of Digital Affairs thus had the obligation to verify this application, namely whether this application is justified by the fulfillment of tasks related to the organization of the elections. This, in turn, necessitated another verification, this time of whether the designated operator had the competence to perform tasks related to the organization of elections, because Article 99 of the 2020 Act cannot be considered a source of such competence. These sources must be sought in electoral law provisions (in the Electoral Code or in specific provisions). If there were no appropriate provisions in the legal order applicable at the time of considering the application granting P. S.A. competencies related to the organization of the elections for the President of the Republic of Poland, then the application in question should not have been granted (...). Furthermore, the NSA in the justification of the aforementioned judgment stated: "First of all, the provisions of the Act - Electoral Code did not foresee for the designated operator in the sense of the Postal Law the necessity of processing personal data to fulfill tasks related to the organization of the elections for the President of the Republic of Poland. (...) If the legislator had deemed it necessary to introduce, in these undoubtedly extraordinary circumstances, a necessary legal regulation providing for the designated operator to perform tasks, mainly of a technical nature, related to the organization of the elections for the President of the Republic of Poland, which would also justify the processing of data from the PESEL register for the purposes of fulfilling these tasks, such regulation could have been introduced into the legal order by way of a statute. Only then could a positive regulation in this matter serve as a basis for proceeding based on Article 99 of the 2020 Act [u.s.i.w.] (...) At the time of undertaking the contested action, there were no other statutory provisions providing the designated operator with substantive (statutory) competence to process personal data for the purposes of fulfilling tasks related to the organization of the elections for the President of the Republic of Poland. Their absence is particularly noted in the 2020 Act and in the Act of March 2, 2020, on special solutions related to preventing, counteracting, and combating COVID-19, other infectious diseases, and the crisis situations caused by them (...). The principles and procedures for conducting elections for the President of the Republic of Poland

The Polish Constitution (Article 127, paragraph 7) defines this. This means that tasks related to the organization of elections for the President of the Republic of Poland, designated for electoral commissions, electoral commissioners, election officials, municipal authorities, etc., may be specified in statutory provisions. Technical tasks in the electoral procedure, designated for the operator appointed under the Postal Law, primarily related to the processing of personal data, can only be regulated by law. As already indicated, in the aforementioned decision of the Prime Minister dated April 16, 2020, instructing P. S.A. to carry out specific actions mentioned therein, it refers to activities aimed at preparing and conducting the elections for the President of the Republic of Poland in 2020 by postal voting. The resolution contained in this decision does not imply the need for the company to process personal data from the PESEL register in connection with the instruction to undertake these actions” (see the judgment of the NSA dated March 13, 2024, case file II OSK 1630/21, (...)). It is also appropriate to cite the justification of the aforementioned judgment of the WSA dated February 26, 2021 (case file IV SA/Wa 1817/20), in which the WSA stated, in particular, that the contested action is flawed because it was taken in violation by the Minister of Digitization of Article 99 of the Act on the Information System for the Support of the Election Process, consisting of providing the Polish Post S.A. with data from the PESEL register in a situation where, contrary to the requirements of the aforementioned provision, there were no grounds to conclude that this data was needed by the Polish Post S.A. for the tasks related to the organization of the elections for the President of the Republic of Poland as declared in its application. At the time of the contested action taken by the Minister of Digitization (i.e., on April 22, 2020), the Polish Post S.A. did not have any own competencies regarding the organization of the elections for the President of the Republic of Poland, for which the data provided by the Minister was necessary. At no stage of the case did the Polish Post S.A. invoke the fact, and above all, did not demonstrate that the provided data would be needed (according to the alternative provided in the provision) to fulfill other obligations imposed by government administration bodies. Furthermore, in the justification of the aforementioned judgment of February 26, 2021, the WSA indicated, quote: “(...) The authority [Minister of Digitization], to which the application of the Participant [Polish Post S.A.] for the provision of data from the PESEL register based on Article 99 of the Act on the Information System for the Support of the Election Process, needed to carry out tasks related to the organization of the elections for the President of the Republic of Poland or to fulfill other obligations imposed by government administration bodies, should have determined based on applicable legislation that: 1) The Participant has no competencies (tasks) in the area of organizing the elections for the President of the Republic of Poland, for which the provision of the aforementioned data would be necessary, 2) No other obligations have been imposed on the Participant that would require such provision. This means that the statutory prerequisites for providing the Participant with data from the PESEL register, as provided in Article 99 of the Act on the Information System for the Support of the Election Process, were not met” (see the judgment of the WSA dated February 26, 2021, case file IV SA/Wa 1817/20, (...)). Similarly, the NSA in the justification of the aforementioned judgment dated June 28, 2024 (case file III OSK 4524/21) stated, in particular, quote: “(...) Article 11, paragraph 2 of the COVID Act could not constitute the exclusive and independent legal basis for the Prime Minister to instruct the Polish Post to ‘take and implement necessary actions aimed at preparing and conducting the elections for the President of the Republic of Poland in 2020 by postal voting.’ In issuing the decision, the authority did not invoke any legal provision based on which the substantive legal basis for the instruction issued to the Polish Post could be reconstructed. Both the first-instance court and the Supreme Administrative Court do not find a legal basis for issuing an instruction to the Polish Post obliging it to undertake actions aimed at preparing the conduct of presidential elections by postal voting. The fundamental reason for such a categorical assessment is the fact that at the time of issuing the decision on April 16, 2020, there was no legal basis that would allow for the conduct of the elections for the President of the Republic of Poland in 2020 solely by postal voting, and since that was the case, there could not, by definition, be a legal basis for issuing an instruction that would obligate to undertake actions aimed at preparing their conduct” (see the judgment of the NSA dated June 28, 2024, case file III OSK 4524/21, (...)). Furthermore, the WSA in the justification of the aforementioned judgment dated September 15, 2020 (case file VII SA/Wa 992/20) indicated, in particular, quote: “At the time of the ruling by the Prime Minister with the contested decision, there was no statutory

provision that would exclude the application of Article 157, paragraph 1 in conjunction with Article 187, paragraphs 1 and 2 of the Electoral Code, granting powers to the National Electoral Commission to any other public administration body. In this regard, it cannot be legally claimed that such a provision was Article 11, paragraph 2 in conjunction with Article 11, paragraph 2a, paragraph 3 of the Act of March 2, 2020, on special solutions related to preventing, counteracting, and combating COVID-19, other infectious diseases, and the crisis situations caused by them. The provisions cited in the contested decision, which, according to the authority, were to constitute the legal basis for the content of the issued instruction, did not allow the Prime Minister to take such action, which in reality constituted a legally inadmissible change to the law – the Electoral Code. The fact that this authority was authorized to issue instructions in connection with combating COVID-19 does not equate to being authorized to change the law in force by designating someone other than the National Electoral Commission as authorized to undertake any actions.”

informed about the preparation of presidential elections, through an administrative decision. (...) In issuing the contested decision, the Prime Minister derived the legal basis for the order contained therein from Article 11(2) in conjunction with Article 11(2a) and (3) of the Act of March 2, 2020, on special solutions related to preventing, counteracting, and combating COVID-19, other infectious diseases, and the crises caused by them. Nevertheless, as already mentioned in the preceding part of the justification, these provisions did not authorize this body to order Poczta Polska S.A. to "carry out actions related to counteracting COVID-19, consisting of undertaking and implementing necessary activities aimed at preparing for the conduct of the presidential elections in the Republic of Poland in 2020, by mail, in particular by preparing the organizational structure, ensuring the necessary infrastructure, and acquiring the necessary material and personnel resources." The provisions cited in the decision authorized only the issuance of orders related to counteracting COVID-19, and not those specified in the operative part of the decision concerning the presidential elections in the Republic of Poland (see the judgment of the Administrative Court of September 15, 2020, case file VII SA/Wa 992/20 (...)).

The President of the Personal Data Protection Office fully shares the positions presented above by the administrative courts and the comprehensive analysis of the legal status applicable at the time of issuing the aforementioned decision on April 16, 2020, by the Prime Minister and at the time of transferring personal data by the Minister of Digitization to Poczta Polska S.A., as a consequence of which it is necessary to state that in this case none of the conditions from Article 6(1) of Regulation 2016/679 justified the sharing of personal data by the Minister of Digitization with the Company and their acquisition and processing by the Company for the purpose of carrying out tasks related to the organization of general elections for the President of the Republic of Poland scheduled for 2020.

24. However, the Company received and processed the personal data made available to it from the moment of their transfer by the Minister on April 22, 2020, until their deletion (which occurred between May 15-22, 2020). The fact of sharing personal data and their processing took place despite the fact that both the Minister and the Company had no legal basis for this. It should be emphasized that in the analyzed factual state, it cannot also be assumed that the basis for validating the Minister's actions can be found in the provisions of the Population Registration Act in force at that time (Article 46(1) and (2)), which was the subject of a broader analysis by both the Administrative Court in the judgment of February 26, 2021, and the Supreme Administrative Court in the judgment of March 13, 2024, and the relevant fragments of the justifications in this regard were indicated in part II.B of this justification.

25. At this point, it should also be noted that in the analyzed factual state, the supervisory authority has no doubts that both the Minister and the Company acted as the administrator of the relevant personal data. The Company, having received the personal data in connection with its submitted application, independently carried out actions allowing it to assume the role of data administrator in accordance with Article 4(7) of Regulation 2016/679, including determining the methods of processing the personal data made available to it by the Minister. The President of the Personal Data Protection Office also has no doubts that the data administrator is the Minister of Digitization as an authority, and not the person holding this position at the time of sharing the personal data with the Company (i.e., April 22, 2020).

26. Expanding on the last of the above statements, it should be emphasized that in the Guidelines 07/2020 of the European Data Protection Board (hereinafter: EDPB), it is indicated that "The definition of administration may arise from legal provisions or an analysis of the elements of the factual state or circumstances of the case." In light of the above, it should be emphasized that the rules for accessing personal data processed within the PESEL register and the purposes for which such access may occur are detailed in legal provisions, including the Population Registration Act. These provisions clearly indicate that it is the minister responsible for digitization as a public administration authority (and not the person currently holding that position) who ensures the maintenance and development of the PESEL register in order to fulfill the tasks specified in the Act (Article 6(2) of the Population Registration Act). Therefore, the indicated provisions determine that the status of the administrator is held by the Minister of Digitization (the authority), and it is on him that the obligations arising from the provisions of Regulation 2016/679 rest. Consequently, it cannot be said in such a case that the determination of the entity having the status of an administrator is decided by the actual actions of the person holding the ministerial position, since it is the legal provision that grants a specific entity (the administrator) the rights to process personal data. Regardless of the above, it should be emphasized that the analysis of the factual state in this case clearly indicates that the administrator – primarily due to the legal and factual access to the PESEL register – is, in the examined aspect, the Minister of Digitization (the authority). Thus, even if the detailed legal provisions mentioned above did not exist, the answer to the question of who the administrator is would be the same.

27. According to the definition contained in Article 4(7) of Regulation 2016/679, the administrator means a natural or legal person, public authority, agency, or other body that alone or jointly with others determines the purposes and means of processing personal data; if the purposes and means of such processing are determined by Union law or the law of a member state, then they may also be determined by Union law or the law of a member state.

designated administrator or specific criteria for their designation may be established. In the case of personal data contained in the PESEL register, which is the subject of this decision, the administrator is, in the examined aspect, the public administration body, namely the Minister of Digital Affairs, and not a natural person holding the position of the head of that body.

28. Furthermore, Guidelines 07/2020 indicate that "Sometimes enterprises and public authorities designate a specific person responsible for carrying out activities related to processing. Even if a specific natural person is appointed to ensure compliance with data protection regulations, that person will not be the administrator but will act on behalf of the legal entity (enterprise or public authority), which will bear ultimate responsibility in the event of a breach of regulations due to acting in the capacity of the administrator."

29. Adopting a different position would necessitate recognizing that each time the person holding the position of a public administration body (in this case, the Minister of Digital Affairs) changes, there would be a change in the data administrator. Such an approach is, however, not only contrary to the applicable regulations, as indicated above, but also unacceptable from the perspective of the ability to fulfill the legal obligations of the administrator, given that then the responsibility for fulfilling the obligations of the administrator arising from Regulation 2016/679 would not rest with the public administration body but with its head.

30. The head of the public administration body who has committed a breach of the law, including data protection regulations, may, however, incur criminal liability, e.g., in connection with exceeding their authority (including Article 107(1) of the Personal Data Protection Act). Additionally, pursuant to the provisions contained in Chapter I of Title 5 of the Labor Code, they may incur financial liability for the damage caused, not exceeding the amount of three months' salary due to them on the day the damage was caused (Article 119 of the Labor Code), unless the damage was caused intentionally. In that case, they are obliged to repair it in full (Article 122 of the Labor Code), which in practice allows for the enforcement of the amount corresponding to the damage incurred by the employer due to the intentional actions of the responsible person (employee) against the administrator in such a case (regressive liability). However, this decision is related to administrative liability borne by the data

administrator (the Minister of Digital Affairs and the Company) for the breach of the provisions of Regulation 2016/679. As indicated, the data administrator has legal means that allow them to seek legal and financial liability – particularly in civil regressive proceedings, or by holding the person responsible for the breach of data protection regulations criminally liable for their violation. The President of the Personal Data Protection Office is of the opinion that to ensure effective protection of personal data, effective mechanisms for seeking accountability for their breach by administrators are necessary, including in relation to the employees of the administrator, including those employed in the structure of the administrator by appointment as heads of the body. However, this responsibility should be pursued through the appropriate procedures mentioned above.

II. Declaration of nullity of the PRM Decision of April 16, 2020, and ineffectiveness of the actions of the Minister of April 22, 2020, consisting of providing the Company with personal data from the PESEL register.

II.A Declaration of nullity of the PRM Decision of April 16, 2020.

31. The Administrative Court in the justification of the judgment of September 15, 2020 (case file VII SA/Wa 992/20) indicated in particular: - "(...) the only highest electoral body of the Republic of Poland authorized to take any actions related to general elections on the date of issuance of the contested decision was the National Electoral Commission [Państwowa Komisja Wyborcza – note by the author], and not the Prime Minister. The competencies of the National Electoral Commission had not been legally granted to any other public body or entity by the date of issuing the contested decision. The issuance by the Prime Minister on April 16, 2020, of the contested decision, instructing Poczta Polska S.A. to undertake actions – which are exclusively within the competence of the National Electoral Commission and the National Electoral Bureau [Krajowe Biuro Wyborcze – note by the author] – consisting of undertaking and implementing necessary actions aimed at preparing for the conduct of the elections for the President of the Republic of Poland in 2020, in a postal mode, particularly through the preparation of the organizational structure, ensuring the necessary infrastructure, and acquiring the necessary material and personnel resources, constituted a gross violation of the aforementioned provisions of the Electoral Code. At the time of the Prime Minister's ruling with the contested decision, there was no statutory provision that excluded the application of Article 157 § 1 in conjunction with Article 187 § 1 and § 2 of the Electoral Code, granting the powers of the National Electoral Commission to any other public administration body. It cannot be legally asserted that such a provision was Article 11(2) in conjunction with Article 11(2a), (3) of the Act of March 2, 2020, on special solutions related to preventing, counteracting, and combating COVID-19, other infectious diseases, and the crisis situations caused by them." - "Although on April 6, 2020, the Sejm of the Republic of Poland adopted the Act on special principles for conducting general elections for the President of the Republic of Poland scheduled for 2020, anticipating the conduct of elections solely in the form of correspondence, but this law did not receive the support of the Senate of the Republic of Poland, which on May 5, 2020, called for its rejection. However, the Sejm rejected the Senate's resolution, and the President of the Republic of Poland signed the law, but only on May 8, 2020. This law came into force on May 9, 2020." - "(...) the provisions invoked by the President of the Council of Ministers in the decision, as the legal basis of Article 11 paragraph 2 in connection with Article 11 paragraph 2a, paragraph 3 of the Act of March 2, 2020, on special solutions related to preventing, counteracting, and combating COVID-19, other infectious diseases, and the crisis situations caused by them, to issue orders to specific entities clearly stated that these orders are to be related to counteracting COVID-19. However, these provisions did not authorize the President of the Council of Ministers to commission actions aimed at preparing the conduct of elections to the Polish Post, and consequently to the actual change of the applicable law (the Electoral Code) by issuing a decision to undertake and implement by any entity other than the National Electoral Office, the necessary actions aimed at preparing the conduct of the elections for the President of the Republic of Poland in 2020, and this in a manner not provided for by the law, i.e., in the "correspondence mode."

32. The NSA in the justification of the judgment of June 28, 2024 (case file III OSK 4524/21) stated in

particular that: - “(...) Article 11 paragraph 2 of the COVID Act could not constitute the exclusive and independent legal basis for the issuance by the President of the Council of Ministers to the Polish Post of the order to ‘undertake and implement the necessary actions aimed at preparing the conduct of the elections for the President of the Republic of Poland in 2020 in the correspondence mode.’ In issuing the decision, the authority did not invoke any legal provision based on which the substantive legal basis for the order issued to the Polish Post could be reconstructed. Both the court of first instance and the Supreme Administrative Court do not find a legal basis for issuing an order to the Polish Post obliging it to undertake actions aimed at preparing the conduct of the presidential elections in the correspondence mode. The fundamental reason for such a categorical assessment is the fact that on the date of the decision issued on April 16, 2020, there was no legal basis that would allow for the conduct of the elections for the President of the Republic of Poland in 2020 solely in the correspondence mode, and since that is the case, there could not, by assumption, be a legal basis for issuing an order that would obligate to undertake actions aimed at preparing their conduct.” - “(...) the exclusive competence to undertake actions related to the organization and conduct of presidential elections belongs to the National Electoral Office, which services the State Electoral Commission. It is the National Electoral Office that is to undertake all necessary actions to ensure the electoral authorities appropriate conditions and organizational, personnel, technical, and financial resources necessary to conduct the elections. The issuance of an order obliging the Polish Post to ‘undertake and implement the necessary actions aimed at preparing the conduct of the elections for the President of the Republic of Poland in 2020, in the correspondence mode, in particular by preparing the organizational structure, ensuring the necessary infrastructure, and acquiring the necessary material and personnel resources’ obviously interferes with the competencies of the National Electoral Office. It is not the Polish Post, but the National Electoral Office that has the legal authority to ensure the conditions necessary for conducting the elections.”

II.B Statement of ineffectiveness of the Minister's action of April 22, 2020, consisting of providing the Company with personal data from the PESEL register.

33. In the judgment of the WSA of February 26, 2021 (case file IV SA/Wa 1817/20), the court stated that the aforementioned challenged action is defective because it was taken in violation by the Minister of Article 99 of the Act on Personal Data Protection. In the justification of this judgment, the WSA indicated in particular that: - “The acceptance that Article 99 of the Act on Personal Data Protection generally constituted the basis indicated in Article 6 paragraph 3 of the GDPR for processing data for the purposes indicated in Article 6 paragraph 1 letter c and e of the GDPR did not relieve the administrator of the PESEL register (...) from the obligation to exhaustively examine the conditions and scope of permissible processing (i.e., providing data to the Participant).” - “(...) the reconstruction by the Authority [the Minister - editor's note] of the legal norm, which was to result from Article 99 of the Act on Personal Data Protection, necessary to determine the precise scope of the Participant's [the Company - editor's note] rights and the Minister's competencies, which could potentially be exercised based on Article 99 of the Act on Personal Data Protection, could not be based on the assumption that this provision independently and arbitrarily, i.e., in isolation from other regulations of the legal system, authorized the Authority to provide the Participant with data from the PESEL register, nor that a sufficient basis for providing this data could be, in particular: 1) the mere declaration by the Participant that this data is needed to perform tasks related to the organization of the elections for the President of the Republic of Poland (or a hypothetical declaration that this data is needed to fulfill other obligations imposed by government administration authorities) or; 2) the issuance by the President of the Council of Ministers, based on Article 11 paragraph 2 in connection with Article 11 paragraph 2a and 3 of the Act of March 2, 2020, of a decision dated [...] April 2020, reference number [...], instructing the Participant to carry out actions in the area of counteracting COVID-19, consisting of undertaking and implementing the necessary actions aimed at preparing the conduct of the general elections for the President of the Republic of Poland in 2020 in the correspondence mode. (...) the legality of providing the Participant on [...] April 2020, based on Article 99 of the Act on Personal Data Protection, with personal data from the register maintained by the Authority.

PESEL, concerning living Polish citizens who reached adulthood on May 10, 2020, and whose country

of residence is Poland, was unconditionally dependent on the determination by the Authority that, on that date, the Participant possessed the legally defined competencies regarding the execution of tasks related to the organization of the elections for the President of the Republic of Poland, which justified the disposal of the aforementioned data, or that the Participant had any other obligations imposed by government administration bodies that would also justify the Participant's disposal of data from the PESEL register. This means that when reconstructing the norm resulting from Article 99 of the Act on the Sharing of Information, the Authority was obliged to take into account, in particular, the provisions regulating the principles of conducting elections for the President of the Republic of Poland at the time of the contested action and possibly the competencies and tasks of the Participant provided therein.

- "(...) The Authority, to which the Participant's request for access to data from the PESEL register was submitted based on Article 99 of the Act on the Sharing of Information, needed for the execution of tasks related to the organization of the elections for the President of the Republic of Poland or for the performance of other obligations imposed by government administration bodies, should have determined based on the applicable legislation that: 1) the Participant does not have any competencies (tasks) regarding the organization of the elections for the President of the Republic of Poland, for which the provision of the aforementioned data would be necessary, 2) no other obligations were imposed on the Participant that would require such provision. This means that the statutory prerequisites for providing the Participant with data from the PESEL register, as provided in Article 99 of the Act on the Sharing of Information, were not met."

- "It should be recognized that on [...] April 2020, the Participant did not meet any of the conditions entitling him to obtain data from the PESEL register concerning living Polish citizens who reached adulthood on May 10, 2020, and whose country of residence is Poland. Accordingly: (i) the Participant did not meet the requirements for the mandatory obtaining of data specified in Article 46(1)(1-6) of the Act on Electronic Services, as he was not any of the entities listed in points 1-3 and 6, and even if it is assumed that as a sole shareholder company of the State Treasury, he is a state organizational unit referred to in point 6, he did not demonstrate that this data was needed for the execution of public tasks defined in separate regulations; (ii) the Participant did not meet the prerequisites for the optional obtaining of data specified in Article 46(2)(1-5) of the Act on Electronic Services, in particular, he did not demonstrate that at the time of the provision he had any legitimate interest, i.e., concerning the sphere of his rights and obligations as a legal entity (not related to the potential performance of public duties) in obtaining data concerning living Polish citizens who reached adulthood on May 10, 2020, and whose country of residence is Poland."

34. Furthermore, the NSA in its judgment of March 13, 2024 (case file II OSK 1630/21) particularly stated that: - "P. S.A. [Company – author's note] in its request for access to data from the PESEL register, referring to the entitlement arising from Article 99 of the Act, indicated that 'the data is needed and will be used solely for the purpose of executing tasks related to the organization of the elections for the President of the Republic of Poland.' The Minister of Digital Affairs therefore had the obligation to verify this request, namely whether this request is justified by the execution of tasks related to the organization of the elections. This, in turn, necessitated another verification, this time of the operator's designated competencies to execute tasks related to the organization of elections, because Article 99 of the 2020 Act cannot be considered a source of such competencies. These sources must be sought in electoral law provisions (in the Electoral Code or in specific regulations). If there were no appropriate provisions in the legal order applicable at the time of considering the request granting P. S.A. competencies related to the organization of the elections for the President of the Republic of Poland, then the request in question should not have been granted."

- "First of all, the provisions of the Act - Electoral Code did not provide for the designated operator in the sense of the Postal Law Act the necessity of processing personal data for the execution of tasks related to the organization of the elections for the President of the Republic of Poland." - "If the legislator had deemed it necessary to introduce in these undoubtedly extraordinary circumstances a necessary legal regulation providing for the designated operator to execute tasks, mainly of a technical nature, related to the organization of the elections for the President of the Republic of Poland, which

would additionally justify the processing of data from the PESEL register for the purposes of executing these tasks, such regulation could have been introduced into the legal order by way of an act. Only then could a positive regulation in this matter serve as a basis for proceeding under Article 99 of the 2020 Act [u.s.i.w. – author's note].”

- “On the day of the contested action, there were no other statutory provisions providing for the designated operator's material (statutory) competence to process personal data for the purposes of executing tasks related to the organization of the elections for the President of the Republic of Poland. Their absence is particularly noted in the 2020 Act and in the Act of March 2, 2020, on special solutions related to preventing, counteracting, and combating COVID-19, other infectious diseases, and the crisis situations caused by them (...).”

- “From the resolution contained in this decision [Decision PRM of April 16, 2020 – author's note], there is no need for the company to process personal data.”

from the PESEL register in connection with the order to take these actions.” - “There is no justification for the allegation of violation by the first-instance court of Article 46(2)(1) of the Act on Population Registration due to the incorrect interpretation of this provision. It provides for the possibility of making data from the PESEL register and the residents' register available to individuals and organizational units, provided they demonstrate a legal interest in this. The court, while clarifying the legal basis for its decision, rightly referred to the legal regulations contained in Article 46(1) and (2) of the Act on Population Registration, stating that in its opinion, it cannot be accepted that the lack of grounds for making data from the PESEL register available based on Article 99 of the 2020 Act could be validated by demonstrating that the operator designated in the sense of the Postal Law meets the requirements for making data available to him under general principles. Regarding the possibility of discretionary data availability based on Article 46(2)(1) of the Act on Population Registration, it stated that the company, in its application, did not invoke the existence of its own, individual legal interest concerning its rights or obligations to process data from the register, but rather on the performance of tasks of a public nature. However, the company, when submitting the application, did not act as an “external entity,” but as an authority in a functional sense, and as demonstrated - without competence (sufficient statutory authorization) to carry out tasks related to the organization of elections.”

III. Assessment of the President of the UODO.

35. As previously indicated, the enumeration of the conditions for the admissibility of processing personal data, contained in Article 6(1) of Regulation 2016/679, is exhaustive (it is a closed catalog), and each of them has an equal, autonomous, and independent character. Therefore, for the legality of the data processing process (any action constituting their processing), it is necessary and sufficient to meet one of them.

36. At the same time, considering the constitutional rule of the rule of law (Article 7 of the Constitution of the Republic of Poland), it is reasonable to assume that the legality of the analyzed actions of the Minister should be verified primarily in the context of meeting the conditions for the admissibility of data processing specified in Article 6(1)(c) of Regulation 2016/679. Given that the assessed data processing process by the Company was intended to serve the implementation of specific tasks in the public sphere, which the Company was to be obliged to undertake by the Decision of the Prime Minister of April 16, 2020, it also requires verification primarily from the perspective of meeting the requirements specified in the aforementioned provision.

37. The decisive factors for assessing the legality of the analyzed actions of the Minister and the Company in the context of data protection regulations are also the rulings contained in the aforementioned court judgments, i.e., in the judgment of the Administrative Court of September 15, 2020 (case file VII SA/Wa 992/20) declaring the invalidity of the Decision of the Prime Minister of April 16, 2020, upheld by the ruling of the Supreme Administrative Court of June 28, 2024 (case file III OSK 4524/21) and in the judgment of the Administrative Court of February 26, 2021 (case file IV SA/Wa 1817/20) declaring the ineffectiveness of the Minister's actions of April 22, 2020, consisting of making available to the Company, from the PESEL register, personal data concerning living Polish citizens who reached adulthood on May 10, 2020, and whose country of residence is Poland, as issued in

violation of the legal provisions in force at the time of its execution, upheld by the ruling of the Supreme Administrative Court of March 13, 2024 (case file II OSK 1630/21). The legal assessment expressed in the aforementioned judgments of the administrative courts obviously also affects the assessment of the Company's actions (which were a consequence and implementation of the Decision of the Prime Minister of April 16, 2020) and results in the necessity to recognize that the analyzed processing of personal data by the Minister (consisting of making them available to the Company), as well as the processing of this data by the Company (in a manner consisting of obtaining it from the Minister and subjecting it to further processing for purposes related to the organization of the general elections for the President of the Republic of Poland held in 2020, which process ultimately concluded with the removal of this data) did not find support in Article 6(1) of Regulation 2016/679.

38. Considering that the cited judgments declared the invalidity of the decision of the Prime Minister of April 16, 2020, imposing obligations on the Company in the area of carrying out necessary actions aimed at preparing for the conduct of elections by mail and the ineffectiveness of the actions of the Minister of Digital Affairs aimed at ensuring the Company the possibility of fulfilling these obligations - i.e., making personal data from the PESEL register available to the Company, as an action violating legal provisions, it should be recognized that the assessed data processing actions (their provision by the Minister to the Company and the Company's acquisition and further processing for the purposes of organizing the elections) did not find support in Article 6(1)(c) of Regulation 2016/679. The findings and legal assessments indicated in the above judgments of the administrative courts obligate us to accept that since at the time of the execution of the aforementioned data processing actions there was no competency norm on the part of the Company authorizing it to act in the area of preparing for the elections for the President of the Republic of Poland, the provision of the subject data by the Minister to the Company and their acquisition and further processing by the Company for the purposes related to the preparation of these elections cannot be considered as processing actions carried out to fulfill the obligations resting on the aforementioned administrators, nor from the perspective of the realization of these obligations as necessary.

39. For the reasons stated above, being bound by the positions expressed in the aforementioned judgments of the administrative courts and the comprehensive analysis of the legal status applicable at the time of issuing the PRM Decision of April 16, 2020, and at the time of the transfer of personal data by the Minister to the Company (their acquisition by the Company from the Minister), and thus fully sharing them, the supervisory authority determined that in this case, the condition from Article 6(1)(c) of Regulation 2016/679, allowing for the provision of personal data by the Minister to the Company and their acquisition and processing by the Company from April 22, 2020, to May 15-22, 2020, for the purpose of carrying out tasks related to the organization of general elections for the President of the Republic of Poland scheduled for 2020, was not met.

40. For the same reason, the analyzed processing activities (the provision of data from the PESEL register by the Minister and their acquisition and further processing by the Company) cannot be assessed as legal under the conditions specified in Article 6(1)(e) of Regulation 2016/679. In both cases regulated by this provision - i.e., both in situations where the processing of data is necessary for the performance of a task carried out in the public interest and when it is necessary for the exercise of public authority entrusted to the administrator - the task and the exercise of public authority must be specified in the regulations referred to in Article 6(3) of Regulation 2016/679. Meanwhile, in the case under consideration - in light of the cited judgments of the administrative courts - such regulations did not exist. It is secondary in this situation that basing processing on Article 6(1)(e) of Regulation 2016/679 is associated with granting individuals whose data is to be processed additional, specific rights regulated in Article 21 of Regulation 2016/679. According to this provision, the data subject has the right to object, for reasons related to their particular situation, to the processing of personal data concerning them. The objection results in the administrator no longer being able to process that personal data unless they demonstrate the existence of compelling legitimate grounds for the processing that override the interests, rights, and freedoms of the data subject, or grounds for establishing, exercising, or defending legal claims. In the case under consideration, it is evident that the actions of the Minister and the Company were not associated - even in assumptions - with the

intention of examining the legitimacy and respect for any position of the data subjects regarding their processing, expressed in the form of an objection.

41. For the sake of order, it should be indicated that the assessed processing activities also did not have a basis in Article 6(1)(d) of Regulation 2016/679 (the necessity of processing data to protect the vital interests of the data subject or another natural person). Even if one were to attempt to recognize that the actions of the Minister and the Company were intended to serve the realization of the vital interests of the data subjects (undefined precise purposes regarding the protection of their life and health), in the absence of the indicated administrators having competency regulations regarding the performance of activities related to the organization of elections, and at the same time the lack of specific competencies concerning health protection, it is evident that the aforementioned condition could not be met in this case. Respecting the independent, autonomous nature of the conditions for the permissibility of data processing cannot lead to conclusions that would contradict the constitutional principle of legality in the actions of public authority. This authority cannot, therefore, exceed the scope of the competencies defined by law, referring to needs related to the protection of the vital interests of the data subjects. On one hand, it seems reasonable to assume that the overall organization of the state – in its public sphere – should serve the broadly understood vital interests of citizens. On the other hand, undoubtedly certain state structures, as well as certain entities in the private sector, are dedicated to achieving goals in the area of life and health protection; however, neither the Minister nor the Company belong to them. Finally, the organization of elections, even in a special period – due to the pandemic situation – does not directly serve the protection of life or health. One cannot deny the need and justification for discussions regarding potential, adequate modifications in the area of the electoral procedure in situations where the election date fell during a pandemic; however, the primary goal of the actions of the Minister and the Company was the preparation of elections, not actions aimed at protecting the vital interests of the data subjects in the area of their health. For this reason, it is impossible to consider the criterion of necessity of the analyzed data processing process (their provision by the Minister and acquisition by the Company) for the realization of the vital interests of the data subjects (in the area of protecting their life and health) as met. According to the position presented in the literature on the subject, the concept of necessity of data processing from the perspective of protecting the vital interests of data subjects is to be understood: “(...) in a similar way as under the provision of Article 6(1)(b). This means that the processing of data for the protection of the vital interests of the data subject or another natural person must be, reasonably assessing, necessary (...) there must be a direct link between the protection of the vital interest and the need to process personal data.” (D. Lubasz, W. Chomiczewski [in:] GDPR. General Data Protection Regulation. Commentary, ed. E. Bielak-Jomaa, Warsaw 2018, Article 6). It is also emphasized that: “In order to base data processing on the discussed premise, it should be necessary to protect the vital interests of the person, i.e.

****Processing of Data****

The non-processing of data could lead to a threat or violation of the vital interests of that person. The determination of whether data processing is necessary should be made individually, in a specific case, taking into account the actual circumstances of data processing (P. Fajgielski [in:] Commentary on Regulation No. 2016/679 on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) [in:] General Data Protection Regulation. Personal Data Protection Act. Commentary, 2nd ed., Warsaw 2022, art. 6).

42. The absence of the remaining conditions for the admissibility of data processing in the examined case does not require further justification. The analyzed data processing process was to be carried out within the framework of exercising public authority. Undoubtedly, the processing of data justified by the necessity of preparing for elections did not involve the acceptance of the possibility for data subjects to make individual decisions regarding the admissibility of such data processing actions or to determine their conditions. It is therefore evident that the discussed data processing activities were not carried out under the conditions specified in art. 6 para. 1 lit. a) (based on the consent of the data subjects) or

art. 6 para. 1 lit. b) of Regulation 2016/679 (as necessary for the performance of a contract to which the data subject is a party, or to take actions at the request of the data subjects prior to entering into a contract).

43. It is also excluded that the contested processing of personal data was based on art. 6 para. 1 lit. f) of Regulation 2016/679. This premise cannot even theoretically be analyzed as the basis for the examined data processing process to the extent that it was carried out by the Minister (provision of personal data to the Company) – due to the regulation contained in art. 6 para. 1 in fine.

44. The determination that the analyzed process of personal data processing by the Minister and the Company was carried out despite the lack of a legal basis from art. 6 para. 1 of Regulation 2016/679 is associated with the finding that the indicated administrators also violated art. 5 para. 1 lit. a) of the aforementioned legal act – breaking the principle of legality, fairness, and transparency expressed therein.

45. Under the conditions in which unauthorized processing occurred by the Minister and the Company of a particularly extensive set of personal data from the PESEL register, the need for which was justified by referring to the ongoing pandemic and the necessity to protect the most essential goods from the perspective of citizens – namely, their life and health (as this was the justification for actions aimed at preparing for the conduct of elections by mail), the weight and significance of data quality rules, including the aforementioned rules and the necessity of respecting them, seem particularly significant. As indicated in the literature on the subject: “The obligation of fairness in data processing means that the administrator should not (...) exploit the difficult situation, limitations, or coercive position of the data subject, take advantage of their stronger position by imposing burdensome conditions for data processing, and should respect the will and interests as well as the legitimate expectations of the person whose data is being processed” (P. Fajgielski [in:] Commentary on Regulation No. 2016/679 on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) [in:] General Data Protection Regulation. Personal Data Protection Act. Commentary, 2nd ed., Warsaw 2022, art. 5).

46. It should be noted here that the principle of legality, formulated in art. 5 para. 1 lit. a) of Regulation 2016/679 (being one of the fundamental principles of personal data processing), “(...) also referred to as the legality of data processing, means the requirement to comply with the norms established in legal regulations. The principle of data processing compliance with the law has a broad subject scope; it does not only concern the provisions of the commented regulation but also the provisions contained in other normative acts. (...) Among the provisions concerning data processing, particular importance is attributed to the requirements relating to the legality of processing (also referred to as the so-called bases for the admissibility of data processing or the premises of legality of data processing), specified in the provisions of art. 6, 9, and 10 of the commented regulation. These provisions indicate the cases when data processing is legally permissible (putting it simply: when it is lawful to process personal data)” (P. Fajgielski [in:] Commentary on Regulation No. 2016/679 on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) [in:] General Data Protection Regulation. Personal Data Protection Act. Commentary, 2nd ed., Warsaw 2022, art. 5).

47. In analyzing the subject matter of this case, it is crucial to emphasize and clearly articulate that the fact of unlawful disclosure of personal data from the PESEL register and its processing by the Company endangered the proper realization of the rights granted to citizens under the Constitution of the Republic of Poland of April 2, 1997 (Journal of Laws No. 78, item 483, as amended). This is particularly important, as according to art. 47 of the Constitution of the Republic of Poland, everyone has the right to legal protection of their private life, family, honor, and good name, as well as to decide about their life.

personal. It should be emphasized that the right to privacy is one of the fundamental human rights, and its protection constitutes an essential element of the value system. At the same time, the consequences of violations of unauthorized access to information can be pursued under civil, criminal,

and administrative law. The Appellate Court in Warsaw also addressed this matter in its judgment of November 19, 2019, case file VI ACa 397/18, indicating that "The right to privacy, in light of constitutional regulations, is primarily viewed through the lens of individual autonomy derived from the dignified concept of the human person, which, according to Article 30 of the Constitution of the Republic of Poland, is the source of all rights and freedoms. The right to protection of private life, which is the subject of protection under Article 47 of the Constitution of the Republic of Poland, means the individual's right to decide about their personal life. An individual, as a subject endowed with autonomy of will, has the right to independently define the area of their privacy, particularly to delineate the boundaries of access to their personal life and information about it for others. The right to privacy in the aspect of the individual's informational autonomy means the entitlement to decide which information concerning them will be available to third parties." In correlation with the aforementioned provision, Article 51 of the Constitution of the Republic of Poland also applies, according to which every citizen has the right to the protection of personal data. According to the Appellate Court in Warsaw (judgment of August 23, 2018, case file VI ACa 1927/16), "The right to the protection of personal data is an emanation of the right to informational autonomy, allowing the individual to control, to a certain extent, the manner and scope of the information concerning them that is made available. In the event of its violation, depending on the specific circumstances of the case, there may be a violation of certain personal goods, subject to a separate regime, protected by the provisions of the Constitution, as well as particularly within the framework of the regulations of Articles 23 and 24 of the Civil Code."

48. It is worth quoting the statements of the Supreme Administrative Court (NSA), which, when considering the issue of the ineffectiveness of the Minister's action, directly referred to constitutional principles in its judgment of March 13, 2024: "The protection of citizens' personal data, including their data contained in the public electronic population register (PESEL), which collects basic data identifying the identity and legal status of natural persons, has strong foundations in constitutional and EU law. Jurisprudence and doctrine emphasize that there is an inseparable connection between the right of individuals whose data is processed to the protection of that data and the right to privacy, a value protected under Article 47 of the Constitution of the Republic of Poland. In relations with public authorities, this provision should be treated as a principle, from which exceptions are permissible only when they meet the requirements specified in Article 31(3) of the Constitution (see M. Wild [in:] Constitution of the Republic of Poland Commentary, ed. M. Safjan and L. Bosek, Volume I, C.H. Beck Publishing, Warsaw 2016, p. 1174). According to Article 51(2) of the Constitution, public authorities may not acquire, collect, or disclose other information about citizens than what is necessary in a democratic rule of law. The Constitutional Tribunal emphasizes the importance of the right to privacy, recognizing that this right—like other rights and freedoms of the individual—is not absolute and may be subject to limitations. However, it is necessary that these limitations be formulated in a manner that meets constitutional requirements (see the ruling of the Constitutional Tribunal of June 24, 1997, case file K 21/96, OTK 1997/2/23). This means that the limitation of the right to privacy manifested in the disclosure by the administrator of information about citizens (personal data) can occur only when another clearly defined norm, principle, or constitutional value supports it, and the degree of this limitation remains in appropriate proportion to the significance of the interest that the limitation is intended to serve."

49. In summarizing the arguments analyzed above, it is important to emphasize that both the Minister and the Company, by unlawfully disclosing and processing personal data from the PESEL register, processed personal data in violation of applicable legal provisions, thus breaching the provisions, i.e., Article 6(1) of Regulation 2016/679, and consequently violating the principle of legality expressed in Article 5(1)(a) of Regulation 2016/679.

IV. Response to the Company's letters received by the President of UODO on February 26 and 27, 2025.

50. After receiving a letter informing it that the President of UODO had conducted administrative proceedings, resulting in the collection of sufficient evidence to issue a decision in this matter (which occurred on February 19, 2025), the Company submitted two letters: the first was received by UODO

on February 26, 2025, and the second the following day.

IV.A. Response to the Company's letter received by the President of UODO on February 26, 2025.

51. In the letter received by the President of UODO on February 26, 2025 (hereinafter referred to as the "letter of February 26, 2025"), the Company, represented by its attorney, indicated that in its opinion, the proceedings conducted in this matter had not yet gathered the necessary evidence, as a result of which the supervisory authority failed to establish the entirety of the factual state, in accordance with Article 7 of the Administrative Procedure Code (also referred to as "k.p.a."), Article 77 § 1 of the k.p.a., and Article 80 of the k.p.a. (to which the President of UODO will refer in subsequent points of this section IV.A) and therefore submitted a number of requests.

52. Firstly, the Company requested an extension of the proceedings based on Article 35 of the k.p.a., for at least 30 days, due to the particular complexity of the case, as well as the volume of material that needs to be analyzed. In the opinion of the Company, this is indicated, for example, by... the Company in its arguments).

Change of view in the matter by the President of the UODO, who referred to the position of the supervisory authority published in April 2020 on the website of the President of the UODO, to decisions on the discontinuation of proceedings (as should be assumed, the Company referred here to proceedings initiated by individual complaints, concluded with the issuance of decisions in the period preceding the final conclusion of the cases, in which judgments of the WSA and NSA were issued as described in points 11 and 12 of this decision), and then to this year's statement by the President of the UODO, in which he stated, "there is no doubt that there has been a violation of data protection in this case."

53. The application referred to in point 52 above should, in the opinion of the supervisory authority, be considered devoid of any basis. According to Article 35 § 1 of the Administrative Procedure Code (k.p.a.), public administration bodies are obliged to handle matters without unnecessary delay. Matters that can be resolved based on evidence presented by the party together with the request for the initiation of proceedings or based on facts and evidence commonly known or known ex officio to the authority before which the proceedings are conducted, or possible to establish based on data at the disposal of that authority, should be handled without delay (§ 2). Furthermore, the handling of a matter requiring explanatory proceedings should occur no later than within one month, and particularly complicated matters – no later than within two months from the date of initiation of the proceedings, while in appellate proceedings – within one month from the date of receipt of the appeal (§ 3).

54. As indicated in the literature concerning Article 35 of the k.p.a.: "The purpose of the commented provisions is to ensure the swift and efficient handling of matters. According to the general principle contained in Article 12, administrative bodies should act thoroughly and quickly in the matter. (...) The term 'without unnecessary delay' does not mean that the matter must be resolved immediately, but as quickly as possible. Therefore, an employee of the authority cannot postpone the resolution of the matter until the statutory deadline for its resolution expires, but should resolve it in the shortest possible time" (R. Hauser, Timeliness of handling matters in the k.p.a. in doctrine and judicial decisions, RPEiS 1997, No. 1, p. 1). (...) The authority should immediately resolve the matter after (...) gathering and analyzing the available data" (P. M. Przybysz [in:] Code of Administrative Procedure. Updated Commentary, LEX/el. 2024, Article 35).

55. The deadlines specified in Article 35 of the k.p.a. are assumed maximum deadlines for resolving matters. The authority examining the case strives to resolve it in the shortest possible time. In other words, it would not be reasonable to accuse the authority of resolving the matter (making a decision) within a shorter time than the maximum, or of not extending the duration of the proceedings to the maximum provided for in Article 35 of the k.p.a. – as long as it previously had sufficient evidence to issue a decision. At the same time, the assessment of the level of complexity of the case – significant from the perspective of determining the justification for extending the duration of the proceedings – is not made by the party. As indicated in the literature: "The particularly complicated nature of an administrative case may be justified due to the complex factual state of the case, requiring careful and

thorough explanatory proceedings, as well as due to an unclear legal state, requiring careful interpretation of legal provisions or due to the precedent nature of the resolution. The qualification of a given case as a 'case requiring explanatory proceedings' or as a 'particularly complicated case' belongs to the authority conducting the proceedings" (A. Wróbel [in:] M. Jaśkowska, M. Wilbrandt-Gotowicz, A. Wróbel, Updated Commentary to the Code of Administrative Procedure, LEX/el. 2025, Article 35).

56. In light of the binding judgments of the administrative courts described in points 11 and 12 of this decision, which contained a binding assessment indicating the invalidity of the PRM Decision of April 16, 2020, and the ineffectiveness of the actions of the Minister of April 22, 2020, there has been an obvious change in the legal situation from the perspective of the possibility of making a substantive assessment of the discussed actions of the Minister and the Company by the supervisory authority and its only permissible direction. In this changed legal reality, issuing an administrative decision regarding the aforementioned actions of the Minister and the Company and their consequences under the provisions on the protection of personal data has become possible, justified, and necessary, and – as it seems – socially expected – constituting an expression of the legal obligation of the supervisory authority to ensure compliance with the provisions on the protection of personal data and to draw consequences from their violations. Considering the binding nature of the aforementioned judgments and the fact that they have settled the issue of the lack of legal justification for the actions of the Minister consisting of providing the Company with certain categories of personal data from the PESEL register, and consequently the lack of legal justification for their acquisition and further processing by the Company, it is not possible to agree with the arguments of the Company regarding the level of complexity of the resolved administrative case, or the scope and nature of the evidence necessary for assessing the compliance of these actions with the provisions on the protection of personal data. Given that the resolution is limited to assessing the admissibility of the aforementioned actions under the provisions on the protection of personal data and its consequences, and its direction has been somewhat determined due to the aforementioned judgments – which are obviously also available to the parties to this proceeding, it is also impossible to speak of the precedent nature of the resolution of this matter, which would necessarily affect the length of the preceding administrative proceedings leading up to its issuance (as indicated by the Company in its arguments).

Company in the subsequent application discussed in point 58 of this decision.

57. In the context of the Company's arguments regarding the complexity or precedent-setting nature of the case, as well as other requests contained in the letter dated February 26, 2025, it is also important to note the principle associated with the aforementioned Article 35 of the Administrative Procedure Code (k.p.a.), namely the principle of speed and simplicity of proceedings resulting from Article 12 of the k.p.a. This provision (in § 1) states that public administration bodies should act thoroughly and quickly in a matter, using the simplest means possible leading to its resolution, and matters that do not require the collection of evidence, information, or explanations should be resolved without delay (§ 2). The doctrine indicates that "The principle of speed and simplicity of proceedings requires public administration bodies to act thoroughly and quickly, using the simplest means possible leading to its resolution (Article 12). The speed of administrative law application is an operational value that promotes the realization of the rule of law. (...). The aim of the discussed principle is to achieve the quickest possible issuance of a decision, thus the discussed principle also fulfills the postulate of the reliability of administrative proceedings (the reliability of issuing decisions). Unjustified delays by the authority in issuing a decision or evading the resolution of a case violates Article 12 § 1" (A. Wróbel [in:] M. Jaśkowska, M. Wilbrandt-Gotowicz, A. Wróbel, Updated Commentary to the Administrative Procedure Code, LEX/el. 2025, Article 12). In the context of, among others, the aforementioned Article 170 of the Law on Proceedings Before Administrative Courts (p.p.s.a.), which states that a final judgment binds not only the parties and the court that issued it but also other courts and other state authorities, and in cases provided for by law, also other persons, it should be emphasized that conducting unnecessary actions in a situation where the supervisory authority is bound by the judgments indicated in points 11 and 12 of this decision would be contrary to the principles of procedural economy.

58. In the letter dated February 26, 2025, the Company also requested, based on Article 10 § 1 of the k.p.a., to ensure the party's actual active participation in the proceedings (by implementing the evidentiary requests from this letter), and before issuing a decision, to set a deadline of at least 30 days to familiarize itself with the complete files, which would allow for a thorough and comprehensive statement from the party regarding all collected evidence and materials. The Company indicated that in this proceeding, the supervisory authority did not receive explanations from the party. According to the Company, its letters submitted to the supervisory authority in other proceedings cannot be considered sufficient, and the party has the right to present its position in this proceeding. The case is of a precedent nature – no similar issue has been examined before, as there has never been a similar case.

59. This request (mentioned in the previous point) is also, in the opinion of the President of the Personal Data Protection Office (UODO), not to be taken into account, and in explaining the position taken in this regard, the supervisory authority will also generally refer to the subsequent evidentiary requests described in the following points containing their citation.

60. According to Article 10 § 1 of the k.p.a., public administration bodies are obliged to ensure active participation of the parties at every stage of the proceedings, and before issuing a decision, to allow them to express their views on the collected evidence and materials as well as the submitted requests. The Company utilized the opportunity to inspect the case files twice: on January 23, 2025, and shortly after receiving notification of the collection of sufficient evidence by the supervisory authority to issue a decision in this matter: on February 21, 2025. After receiving this notification, the Company delivered two letters to the President: one dated February 26, 2025, containing primarily evidentiary requests, and another dated February 27, 2025, which contains the position expressed by the Company on the matter. In light of the President of UODO's recognition that none of these letters provided him with information that would affect the assessment of the admissibility of the Minister's disclosure of personal data and the legality of their further processing by the Company (which has already been assessed in a binding manner for the supervisory authority by the courts in the judgments described in points 11 and 12 of this decision), it is difficult to find a violation of Article 10 § 1 of the k.p.a. The provisions obligate the authority conducting the administrative proceedings to consider the party's request for the introduction of evidence only if the subject of the evidence is a fact relevant to the case (Article 78 § 1 of the k.p.a.). The public administration authority may disregard a request (§ 1) that was not made during the evidence-taking process or during the hearing if that request concerns facts already established by other evidence, unless they are significant for the case (Article 78 § 2 of the k.p.a.).

61. To put it differently: the party's request for the introduction of evidence must be considered by the public administration authority only when it determines that the subject of the evidence is a fact relevant to the case. The doctrine holds that the assessment of whether the subject of the evidence is a fact relevant to the case or not belongs to the authority, not to the party. This means that the authority conducting the proceedings is not bound by the evidentiary requests of the party. The authority is, however, bound in this regard by the provisions of substantive law that constitute the basis for the decision^[9]. Therefore, it will be up to the authority to decide whether to admit a given piece of evidence or not. There is no doubt that the authority should first consider whether the fact for which the party has introduced the evidence requires proof. According to the judgment of the Supreme Administrative Court (NSA) of August 4, 2017 (case file I OSK

1607/16, LEX no. 2345355), in every proceeding, the authority is obliged to gather evidence that is significant for resolving the matter at hand and to make the necessary factual findings based on this evidence. However, the determination of what factual findings are necessary for resolving the matter is governed by correctly interpreted provisions of substantive law, not by the subjective belief of the party. No authority conducting the proceedings is obliged to present all evidence requested by the party. The evidence indicated by the party may only be disregarded if the disputed facts significant for resolving the matter have not been clarified. This means that only the failure to establish circumstances relevant to the case can be considered a violation of procedural rules that could affect the content of the factual findings, and consequently, the content of the ruling concluding the proceedings in the given matter.

62. The entitlement of the party provided for in Article 78 of the Administrative Procedure Code (k.p.a.) is subject to limitations due to the purposefulness and speed of the proceedings. The authority may disregard a request to present evidence if it aims to prolong the case (judgment of the Supreme Administrative Court (NSA) of November 29, 2016, case file II GSK 3322/15, LEX no. 2230883).

63. For clarity, it should be noted that: "In the judgment of the NSA in Lublin of December 15, 1995, SA/Lu 507/95, LEX no. 27107, it was stated that: 'The subject of evidence must be a circumstance of legal significance for resolving the matter (Article 78 § 1 of the k.p.a.), thus concerning the subject of the case and having legal significance for its resolution'" (A. Wróbel [in:] M. Jaśkowska, M. Wilbrandt-Gotowicz, A. Wróbel, Updated Commentary to the Administrative Procedure Code, LEX/el. 2025, Article 78).

64. The President of the Personal Data Protection Office (UODO) deemed the evidentiary requests indicated by the Company to be irrelevant to the case, as in his opinion, the evidence collected in the case is sufficient for its resolution, and the authority is not obliged to consider all requests from the party.

It should be emphasized that – in the context of the aforementioned judgments of administrative courts – the evidentiary actions requested by the Company serve to demonstrate circumstances that no longer require evidence or circumstances that are irrelevant from the perspective of resolving the matter at hand. The supervisory authority has no basis to conduct any evidentiary actions regarding the legality of the provision – in the context of actions aimed at preparing for the presidential elections in the Republic of Poland, which were to take place on May 10, 2020 – by the Minister of certain personal data from the PESEL register to the Company and their acquisition and further processing by the Company. The issue of the lack of legal grounds for the aforementioned actions has been unequivocally resolved (assessed) by the administrative courts, and this assessment, as has been repeatedly emphasized in this decision, binds the supervisory authority. The position of the supervisory authority in this regard is an obvious and necessary consequence of the discussed judicial resolutions – therefore, the legitimacy and direction of the resolution of this matter by the supervisory authority cannot raise any doubts. It should be remembered that the scope of resolution covered only the issue of the legal assessment of the admissibility of the aforementioned actions by the Minister and the Company in the context of data protection regulations. This explains the reasons why there are no grounds for considering the evidentiary requests submitted by the Company.

65. In a letter dated February 26, 2025, the Company also requested the presentation of evidence from documents in the form of files of all proceedings mentioned in the letter (...) dated February 12, 2025, and in the attachment to it (178 proceedings), by attaching them to the files of this proceeding; alternatively, allowing Poczta Polska S.A. to gain insight into the relevant proceedings. The Company pointed out that according to Article 73 § 1 of the k.p.a., the party has the right to access the case files, to make notes, copies, or transcripts from them, and this right also applies after the proceedings have concluded. In the opinion of the Company, since the supervisory authority considers it significant for this proceeding to refer to the proceedings mentioned in the letter of February 12, 2025 (while having access to them), the party to the proceedings should also have the opportunity to analyze them, especially in a proceeding that may end with the imposition of a financial penalty. The Company stated that the mere fact regarding the number of complaints received is obviously irrelevant, but what remains significant (besides the number itself) is what was the subject of the complaints, what evidentiary proceedings were conducted, and finally – what were the resolutions of the supervisory authority. In the opinion of the Company, these circumstances should be established during the evidentiary proceedings, allowing the parties to familiarize themselves with them.

66. The President of the UODO deemed the requests indicated in the above point to be unfounded. The Company, processing vast amounts of personal data on a daily basis, should be aware that according to Article 83(2)(e) of Regulation 2016/679, the supervisory authority, when deciding whether to impose an administrative fine and determining its amount, pays due attention in each individual case, among other things, to any relevant previous violations by the administrator or processor. As will

be demonstrated in the next part of this decision (see sections V.B and V.C), the President of the UODO acted in accordance with the aforementioned provision. It is obvious that in the case of each administrator, all relevant violations that occurred on their part are taken into account, which means that violations concerning the Minister were not considered when making decisions regarding the Company (and vice versa) – hence the Company's request to include the files of proceedings in which the Minister was a party is completely unjustified. Similarly, the inclusion of the files of the proceedings mentioned in the aforementioned letter into the files of this proceeding is also unjustified.

On February 12, 2025, which were conducted with the participation of the Company – as it possesses knowledge regarding their course and the decisions made, and may at any time exercise the right under Article 73 § 1 of the Administrative Procedure Code.

67. The files of administrative proceedings (178) in individual cases mentioned in general terms in the letter (...) of February 12, 2025, have not, in fact, been included in the files of the current proceedings. These proceedings obviously concern strictly individual complaints formulated by individual complainants against the Minister or the Company and their related demands. The subjective and objective scope of these proceedings, as well as the stage they are at, are different. However, their common denominator is the factual state underlying the initiated complaint proceedings – i.e., the actions of the aforementioned administrators in the area of personal data of the complainants related to the preparation procedure for the presidential elections in the Republic of Poland, which were to take place on May 10, 2020. Regardless of the validity of the claims made by individual complainants in the individual administrative proceedings, the number of initiating complaints indicates that a relatively large group of citizens has identified specific damages on their part related to the aforementioned actions in the area of election organization, and at the same time serves as a measure of the social response to the aforementioned actions.

68. In subsequent points (4 and 5) of its letter of February 26, 2025, the Company requested the presentation of evidence in the form of an expert opinion in the field of security regarding the safeguards used by Poczta Polska S.A. concerning the acquired data, the security of the medium, the security procedures applied by the Company concerning the medium, the regulation of access for individuals, actions taken by Poczta Polska S.A. regarding the medium, the method of destruction of the data medium concerning its durability and completeness, as well as the presentation of evidence in the form of an expert opinion in the field of computer science to confirm that no data from the medium, from which Poczta Polska S.A. acquired personal data in connection with the postal voting in 2020, was recorded on hard drives or in the cloud. However, both of these requests concern circumstances unrelated to the subject of this decision. The scope of the resolution covered only the issue of the legal assessment of the admissibility of the actions of the Minister (consisting of providing personal data from the PESEL register to the Company) and the Company (i.e., acquiring and further processing these data without legal justification) in the context of personal data protection regulations. In light of the above, the President of the UODO considered these requests from the Company to be entirely unfounded.

69. Furthermore, the Company, in its letter of February 26, 2025, requested the presentation of evidence in the form of testimonies from three witnesses (indicated in point 6 under letters a – c of this letter) regarding: the category of acquired personal data, the time of data processing, the scope of processing, the determination (quoted:) "when and in what manner" the processing was completed, including the method of destruction of the medium containing personal data, as well as the due diligence exercised by Poczta Polska S.A. at every stage of processing.

70. Referring to the Company's request as described in the previous point, it should be noted that the circumstances significant from the perspective of these proceedings arise from the findings indicated in the binding judgments of the supervisory authority (WSA and NSA) (mentioned in points 11 and 12 of this decision), as well as from the documents collected in the files of these proceedings. None of the aspects that the testimonies of the individuals indicated in point 6 letters a – c of the aforementioned letter would concern require, in the opinion of the President of the UODO, the presentation of such evidence for its determination to a sufficient degree to issue a decision. In a situation where, for

example, the period of personal data processing by the Company can be determined to a significant degree based on explanations from the Company itself (see points 6 and 10 of this decision), it is unnecessary to present additional evidence on this matter. This would also be contrary to the aforementioned principles of the economy of administrative proceedings – it would lead to its unjustified prolongation.

71. In the same point 6 of the letter of February 26, 2025 (under letter d), the Company requested the presentation of evidence in the form of testimony from another indicated witness regarding: the procedures in place at Poczta Polska S.A. concerning personal data protection, cooperation with the President of the UODO in matters related to the preparation for the postal elections in 2020, and in other matters. However, just as in the case of the requests described in point 69 of this decision, this request (regarding the aforementioned procedures) also concerns circumstances unrelated to the subject of this decision. As previously indicated, the scope of the resolution covered only the issue of the legal assessment of the admissibility of the actions of the Minister (consisting of providing personal data from the PESEL register to the Company) and the Company (i.e., acquiring and further processing these data without legal justification) in the context of personal data protection regulations. Moreover, significant from the perspective of Article 83(2)(f) of Regulation 2016/679 is the degree of cooperation with the supervisory authority to eliminate the violation and mitigate its potential negative effects, rather than the cooperation of a given entity in general. In a situation where the Company considers "cooperation with the Authority in matters related to the preparation for the postal elections in 2020" to mean responding to requests made to it in the course of ongoing complaint proceedings, it should be emphasized that such an understanding of cooperation with the supervisory authority constitutes an obligation of every administrator under Article 31.

regulation 2016/679, and the failure to duly comply with this obligation is sanctioned by the possibility of imposing an administrative monetary penalty based on Article 83(4)(a) of the aforementioned regulation. Therefore, even if the authority considered the previous cooperation of the Company with the President of the UODO (which, however, lacks justification in light of Article 83(2)(f) of regulation 2016/679), this circumstance would be assessed neutrally and would have no impact on the penalty imposed in this proceeding – for which reason, the taking of evidence from witness testimony should be deemed unnecessary, as it would not affect the resolution of this case in any way. The cooperation aimed at remedying the violation should also be considered irrelevant, as the violation was rectified before the initiation of the administrative proceedings in question. In light of the above, the President of the UODO deemed these submissions by the Company to be entirely unfounded.

72. In the last letter of point 6 (lit. e) of the letter dated February 26, 2025, the Company requested the taking of evidence in the form of testimony from another indicated witness regarding: the financial condition of Poczta Polska S.A. in the financial years 2020-2024 and the current situation, determining whether Poczta Polska S.A. obtained benefits related to the processing of personal data in connection with preparations for the postal elections in 2020, directly or indirectly. This request is, in the opinion of the President of the UODO, unjustified. The circumstances for which the evidence requested by the Company was to be taken were established based on the evidence presented by the Company (financial report for 2023) and – due to the Company not presenting the financial report for 2024 – on information (facts) that are publicly known and relate to the financial condition of the Company during that period. These latter pieces of information (publicly known facts, and thus – in accordance with Article 77 § 4 of the Code of Administrative Procedure – not requiring evidence) were predominantly presented in the public domain by the Company itself or by a representative of the Ministry of State Assets overseeing the Company (their source is therefore undoubtedly also the Company itself). They thus have the quality of credibility and objectivity. Their analysis simultaneously leads to conclusions consistent with those that the Company would like to demonstrate before the President of the UODO – the necessity of mitigating the penalty due to the financial condition of the Company and taking into account the circumstances of the lack of benefits that the Company would have gained in connection with the violation. The poor financial condition of the Company in the years 2023-2024 (the situation of the Company in earlier periods is, in the opinion of the President of the UODO, irrelevant to the case) was taken into account by the President of the UODO as a significantly mitigating circumstance in

assessing the compliance of the penalty amount with the principle of proportionality (see point 150 of the justification). Moreover, the fact of the lack of benefits related to the commission of the violation was also assessed by the President of the UODO in favor of the Company, not treating it as a circumstance burdening it (see point 142 of the justification). In this situation, the taking of the evidence requested by the Company would not have affected the content of the factual findings made by the President of the UODO, and consequently, the content of the decision issued in this case (including the amount of the administrative monetary penalty imposed on the Company).

73. In the next point of the letter dated February 26, 2025, the Company requested, based on Article 79 § 1 of the Code of Administrative Procedure, to be notified of the place and date of taking evidence from witnesses, simultaneously signaling that Poczta Polska S.A. intends to participate in the taking of evidence, including asking questions to witnesses, experts, and parties, and providing explanations. This request, in the context of the assessment made by the President of the UODO regarding the need to take this evidence, remains entirely unfounded.

74. In point 8 of the aforementioned letter dated February 26, 2025, the Company's attorney requested, based on Article 89 § 1 and § 2 of the Code of Administrative Procedure, to conduct a hearing and notify him as the attorney of Poczta Polska S.A.

75. According to Article 89 of the Code of Administrative Procedure, the public administration authority shall conduct, ex officio or at the request of a party, a hearing during the proceedings, in any case when it ensures the acceleration or simplification of the proceedings or when required by law (§1). The authority should conduct a hearing when there is a need to reconcile the interests of the parties and when it is necessary to clarify the matter with the participation of witnesses or experts or by means of inspections (§ 2). Analyzing first the prerequisites from paragraph 2 of the aforementioned article, it should be noted that the need to reconcile the interests of the parties arises when "at least two parties with conflicting interests are involved in the case, which the authority should reconcile (E. Iserzon [in:] Commentary, 1970, p. 182; cf. judgment of the NSA in Warsaw of December 19, 1983, I SA 806/83, LEX no. 1689118)" (A. Wróbel [in:] M. Jaśkowska, M. Wilbrandt-Gotowicz, A. Wróbel, Updated Commentary to the Code of Administrative Procedure, LEX/el. 2025, Article 89). This is not the situation we are dealing with in this case. Moreover (as already explained above), the President of the UODO found no grounds to consider the taking of evidence from the questioning of witnesses or experts as justified. In the analyzed situation, therefore, the prerequisites from paragraph 2 of the aforementioned provision do not exist. The President of the UODO took the position that in this case, the prerequisites from Article 89 § 1 of the Code of Administrative Procedure do not exist either. As indicated in the doctrine: "The public administration authority is obliged to conduct a hearing when it ensures the acceleration or simplification of the proceedings. The assessment of whether conducting a hearing will contribute to the acceleration or simplification of the proceedings belongs to the authority conducting it" (A. Wróbel [in:] M. Jaśkowska, M. Wilbrandt-Gotowicz, A. Wróbel, Updated Commentary to the Code of Administrative Procedure, LEX/el. 2025, Article 89). In the opinion of the President of the UODO, conducting a hearing in the analyzed case...

the situation (in which, as indicated, there is no justification for conducting evidence from witnesses or experts) would be unnecessary. It should be noted that "The party's request for a hearing is not binding on the authority. The failure to conduct a hearing despite the party's request should be assessed in terms of the efficiency of the proceedings. The obligation to conduct the proceedings in a quick and thorough manner, using the simplest means possible, is contained in Article 12 § 2" (P. M. Przybysz [in:] Administrative Procedure Code. Updated Commentary, LEX/el. 2024, Article 89). In order to fully explain the reasons for not considering the analyzed request of the Company, the President of the UODO additionally refers to the content of the judgment of the NSA of December 1, 2020, case file II OSK 3866/19 (LEX no. 3121822), which stated that: "The request for a hearing in administrative proceedings does not bind the authority. It is also not a form of implementing the principle of explaining to the parties the grounds for resolving the case as indicated in Article 11 of the Administrative Procedure Code. The hearing is intended to serve the authority in establishing the factual state of the case as fully as possible, especially when the participation of witnesses, experts, or the conduct of

inspections is required. Its purpose is therefore not to explain to the parties the grounds on which the authority acts, nor to debate its position. The explanation of the reasons for a specific resolution of the case is primarily served by the opportunity to familiarize oneself with the collected evidence and the justification of the decision."

76. In a letter dated February 26, 2025, the Company referred to Article 72 of the Act of May 10, 2018, on the protection of personal data and Article 83 § 2 of Regulation 2016/679 in the context of the possibility considered by the Company that the proceedings regarding the violation of personal data protection regulations may end with the imposition of an administrative monetary penalty. It emphasized in this context that: "Due to the above, the conduct of the requested evidence is necessary, and the failure to conduct it will undoubtedly result in the establishment of an incorrect, particularly incomplete, factual state in this case, in violation of Article 7 of the Administrative Procedure Code, Article 77 § 1 of the Administrative Procedure Code, and Article 80 of the Administrative Procedure Code. According to Article 70 § 1 of the Administrative Procedure Code, the public administration authority is obliged to exhaustively collect and consider all evidence. Meanwhile, the Authority failed to conduct actions in the course of these proceedings that would lead to the determination, for example, of the duration of the processing of personal data by Poczta Polska S.A. in April and May 2020, the scope of their processing, etc. These circumstances can be proven by the evidence requested in points 4-6 of this letter. At the same time, it should be noted that in statements to the press (Interview for (...) on January 27, 2025), the President of the Office indicated that the proceedings would be concluded in the perspective of "months." Meanwhile, on February 13, 2025, the Authority notified about the planned conclusion of the proceedings. In this regard, referring to Article 78 § 1 of the Administrative Procedure Code (The party's request regarding the conduct of evidence should be considered if the subject of the evidence is a circumstance significant for the case), I submit the evidence requests as above. At the same time, I signal that, out of procedural caution, a position of Poczta Polska S.A. will be submitted within the specified deadline. However, due to the complexity of the case, the availability of the collected evidence only on February 21, 2025, makes it reasonable to both fulfill the requests and allow the party to present explanations within a timeframe that considers the extensive material."

77. Not repeating the above-mentioned arguments of the President of the UODO here, it is necessary to briefly address the recurring comment of the Company regarding the processing time of personal data provided by the Minister. For the issuance of this decision, it is unnecessary to determine the processing time of personal data more precisely. The Company submitted statements in this regard referenced in points 6 and 10 of this decision and—as indicated in the quote referenced in the previous point—still states that the processing took place in April and May 2020. As already demonstrated above, the conduct of the evidence requested by the Company is, in the opinion of the President of the UODO, unnecessary for making a correct decision.

78. The statement of the Company quoted in point 76 above, in which it alleges "the provision of the collected evidence only on February 21, 2025," remains unclear to the supervisory authority. It has indeed reviewed the case files twice: first on January 23, 2025, when the files contained, among other things, copies of the documents mentioned in points 4-10 of this decision, and a second time after being informed by the President of the UODO about the collection of evidence sufficient to issue a decision in this case (which the Company received on February 19, 2025). A renewed review of the files took place on February 21, 2025, at the request of the Company, and it is difficult to find grounds for making any allegations against the supervisory authority in this situation.

79. Referring to the full content of the Company's letter of February 26, 2025, it should be noted that one cannot agree with the Company's suggestion that only the consideration of the evidence requests submitted by it will ensure its "truly active participation in the proceedings." At every stage of the conducted proceedings, the Company was informed about its progress and about its rights, and actively exercised those rights—familiarizing itself with the collected evidence, formulating assessments and conclusions related to it. The Company was in no way restricted in its ability to "adequately and comprehensively express itself (...) regarding the entirety of the collected evidence

and materials," nor

presentation of the position regarding individual aspects of the examined case. The Company submitted a letter to the President of the UODO containing its adopted position on February 27, 2025, and given the fact that the supervisory authority did not conduct any new evidence (finding no information or evidence in the letters submitted by the Company on February 26 and 27, 2025, that could be deemed significant for the resolution of this case), the submission of further positions seems unjustified.

80. For clarity, it should be reiterated here that the supervisory authority is bound by the final judgments indicated in points 11 and 12 of this decision and to recall the position expressed in the doctrine, according to which: "Binding pertains to both law (binding by the disposition contained in the judgment of a specific legal norm derived by the court from general norms contained in legal provisions) and factual findings. The legal assessment of a binding nature must concern the proper application of a specific provision or its correct interpretation in relation to a strictly defined resolution made in a specific case. Regarding factual findings, the binding limits the proof of specific facts established in the preliminary ruling. The ratio legis of Article 170 of the Administrative Procedure Code is that it guarantees the consistency and logic of the actions of state authorities, preventing the functioning in legal circulation of resolutions that are irreconcilable within the entire system of exercising power (judgment of the NSA of May 19, 1999, IV SA 2543/98, LEX No. 48643). (...) A final ruling of the administrative court may be – in relation to the fate of the challenged act – negative or positive. A negative ruling contained in a judgment granting the complaint has a retroactive effect concerning that act. As a result, in the proceedings before the administrative authorities, a return to the situation that existed before the issuance of the act occurs. A subsequent ruling of the court thus has a constitutive character and operates in this respect *ex tunc* – from the moment of issuing the decision affected by the defect (judgment of the WSA in Warsaw of August 23, 2017, II SA/Wa 1317/16, LEX No. 2366752)" (B. Dauter [in:] A. Kabat, M. Niezgodka-Medek, B. Dauter, *Law on Proceedings Before Administrative Courts. Commentary*, 9th ed., Warsaw 2024, Article 170).

81. In light of the above, considering the Company's conclusions would not only be unjustified but would also lead to unnecessary prolongation of the proceedings. It should be emphasized that "The purpose of the regulation contained in Article 78 § 2 is to prevent a party from prolonging the proceedings by submitting unnecessary evidence requests, i.e., concerning circumstances that have already been undisputedly established. This concerns both circumstances established through evidence and facts that are commonly known as well as facts known to the authority *ex officio* (see judgment of the NSA of February 19, 2002, V SA 1918/01, LEX No. 685539). The administrative authority is therefore entitled to assess the necessity of conducting evidence and will not violate the provisions of administrative proceedings if it refuses to conduct evidence, citing the unnecessary nature of its conduct in light of the commented provision (cf. judgment of the NSA of March 17, 1986, III SA 1160/85, ONSA 1986, No. 1, item 19). The authority assesses, guided by the norm of substantive law, which facts are significant for the case, whether they require proof, and what evidence is needed to prove these facts (cf. judgments of the NSA of December 15, 1995, SA/Lu 507/95, LEX No. 27107 and SA/Lu 508/95, LEX No. 1691402)" (P. M. Przybysz [in:] *Administrative Procedure Code. Updated Commentary*, LEX/el. 2024, Article 78). A similar position was expressed by A. Wróbel [in:] M. Jaśkowska, M. Wilbrandt-Gotowicz, A. Wróbel, *Updated Commentary to the Administrative Procedure Code* (LEX/el. 2025, Article 78), citing relevant case law: "The authority may not consider a request for evidence if it aims to prolong the case (judgment of the NSA in Gdańsk of October 2, 1998, I SA/Gd 1863/96, LEX No. 37600; cf. judgment of the NSA of December 8, 2017, I OSK 1214/17, LEX No. 2456039, in which it was stated that the party's right to submit a request for evidence is subject to limitations, which in terms of purposefulness and necessity to ensure the speed of proceedings, the authority should consider each time, especially when there are insufficient arguments to challenge the previous findings)."

82. At this point, it is also worth recalling the position of A. Wróbel [in:] M. Jaśkowska, M. Wilbrandt-Gotowicz, A. Wróbel, *Updated Commentary to the Administrative Procedure Code* (LEX/el.

2025, Article 78), which pointed out that “In the judgment of the NSA in Warsaw of March 17, 1986, III SA 1160/85, ONSA 1986/1, item 19, it was accepted that: ‘The refusal by the appellate authority to conduct evidence to clarify circumstances already undisputedly clarified by the first-instance authority does not constitute a violation of the provisions of administrative proceedings that affected the outcome of the case, and thus does not justify the acceptance of the complaint by the Supreme Administrative Court and the annulment of the challenged decision.’”

83. In order to respond to the Company’s statements regarding Articles 7, 77 § 1, and Article 80 of the Administrative Procedure Code, it should be noted that the principle of objective truth regulated in Article 7 of the Administrative Procedure Code requires the authority conducting the proceedings to gather ex officio or at the request of a party and to consider all evidence in a manner that allows for the establishment of the factual state of the case in accordance with reality. Of course, this concerns the clarification of factual circumstances to the extent necessary for the resolution of the case. This principle is a fundamental rule of any modern procedural regulation. It should be remembered that the correct establishment of the factual state of the case is a necessary condition – although still insufficient – for its proper resolution. Article 77 § 1 of the Administrative Procedure Code, on the other hand, imposes the obligation to gather...

and consideration of the full body of evidence in the case, which takes place on two levels. Firstly, it involves conducting evidentiary proceedings regarding all circumstances that constitute legal facts, and thus those that are associated with specific legal consequences in light of the provisions of applicable law. Secondly, the collected evidence should be fully reflected in the factual justification of the decision. As for the obligation to assess whether a given circumstance has been proven based on the entirety of the evidence (Article 80 of the Administrative Procedure Code), it cannot be claimed that a circumstance has been proven if there is evidence in the evidence material, recorded in the case files, confirming it, while at the same time there is also evidence that contradicts that circumstance, unless this contradiction can be convincingly explained. It is worth noting that for the effectiveness of the objection of violation of the principle of free assessment of evidence, it is not sufficient to state the invalidity of the factual findings made, referring to a factual state that, in the opinion of the person raising such an objection, corresponds to reality. It is necessary to indicate the reasons disqualifying the authority's proceedings in this regard. In particular, the person raising such an objection should indicate what criteria of assessment the authority violated when assessing specific evidence, deeming them lacking in credibility and evidentiary power or unjustly attributing them credibility (see: judgment of the Supreme Administrative Court of August 7, 2018, case file I OSK 2051/16). In the opinion of the President of the Personal Data Protection Office (UODO) – considering the above argumentation – it would be unfounded to allege that he violated the principles expressed in Articles 7, 77 § 1, and 80 of the Administrative Procedure Code. The supervisory authority conducted the proceedings guided by the principles arising from these provisions, including extensive reasoning supporting this in the decision.

84. In summary, in the present proceedings, the President of UODO did not take into account the evidentiary motions of the Company due to the fact that sufficient evidence had been gathered from the perspective of resolving the matter through an administrative decision, which was complete, logical, and internally consistent. From the perspective of the legal assessment of the actions of the Minister and the Company, the judgments described in points 11 and 12 of this decision are of key importance. Due to the binding nature of the legal assessment of the actions of the Minister and the Company contained therein – deemed unauthorized – the supervisory authority is not obliged to conduct any clarifying activities that would serve to assess the legality of these actions. Regardless of the number and nature of the evidence presented regarding the above circumstances, the authority could not assess the actions of the Minister and the Company differently than they were assessed by the Provincial Administrative Court (WSA) and the Supreme Administrative Court (NSA) in the aforementioned judgments. Such evidentiary activities should therefore be assessed as illusory and unnecessarily prolonging the proceedings, which obviously undermines the principle of efficiency in conducting it. The authority must assess the validity of evidentiary motions solely based on the real need for their conduct in the context of the necessity to gather information essential for the possibility

of resolving the case. These activities cannot be motivated solely by the suggestion of the party that the refusal to consider the evidentiary motions will be regarded as a violation of the guarantees of active participation in the proceedings or the presentation of a complete position in the matter.

IV.B. Response to the letter from the Company, which was submitted to the President of UODO on February 27, 2025.

85. In the letter from the Company, which was submitted to the President of UODO on February 27, 2025 (hereinafter referred to as "the letter of February 27, 2025"), its representative presented the position in the matter: 1) requesting a declaration that Poczta Polska S.A. did not violate the provisions on the protection of personal data, and consequently, there are no grounds for an administrative monetary penalty; alternatively, 2) requesting a declaration that the actions of Poczta Polska S.A. were not unlawful, and consequently, there are no grounds for imposing an administrative monetary penalty; and in the context of the proceedings, supported the motions, including the evidentiary motions submitted in the Company's letter discussed in section IV.A of this decision, and also requested the conduct of the evidence mentioned in the justification of this letter regarding the circumstances indicated there.

86. In the justification of the aforementioned letter, in its point I containing "Preliminary Information," the Company stated that "(...) it does not dispute that it processed personal data obtained from the Minister of Digital Affairs (...), for the purpose of preparing elections, however, it indicates the lack of unlawfulness of such action. The Company acted solely within the limits of the law applicable at that time, exercised due diligence, processed personal data to the minimally necessary extent, and then deleted it immediately after the purpose of its processing ceased, in a permanent and secure manner. The imposition of an administrative monetary penalty is discretionary. However, it should occur when the authority finds a state of violation of the provisions on the protection of personal data, and the actions of the data processor are unlawful and culpable." The Company, explaining that in its opinion such circumstances do not exist in the present case, referred, among others, to: the fact of acting based on Article 99 of the Act on the Preparation of Elections, the immediate enforceability of the PRM Decision of April 16, 2020, the confirmation of the compliance of Article 11 of the COVID-19 Act with the Constitution of the Republic of Poland by the Constitutional Tribunal, the presumption of constitutionality of laws and legality of administrative decisions, the fact that the Company only requested the provision of personal data by the Minister, as well as the confirmation of the legality of its actions by a number of entities mentioned in this letter (including the President of UODO and the National Electoral Commission). The Company also pointed out in this context to Article 8 of the Administrative Procedure Code, the lack of unlawfulness of its actions confirmed by the case law of common courts, and the fact of processing duly secured personal data in a manner...

****minimalny, działanie w stanie epidemii – zgodnie****

with the then-applicable law, the fact of having personal data of voters in connection with the "correspondence elements" applicable in subsequent elections, as well as access to the PESEL register. However, these arguments (mostly elaborated in points II-XI of the letter dated February 27, 2025) cannot be taken into account in the current situation, nor can the evidence attached to this letter, and the argumentation of the President of the UODO in this regard will be presented in the order corresponding to the points into which the Company divided the letter of February 27, 2025. It should be noted at this point that in reference to the position of the Company expressed in this letter, the President of the UODO maintains his earlier argumentation contained in this decision (and refers to it), particularly regarding the extent to which this argumentation relates to the binding nature of the supervisory authority by final judgments mentioned in points 11 and 12 of this decision (inter alia, based on Article 170 of the Administrative Court Procedure Act).

87. Referring to the above-quoted fragment of point I of the Company's letter dated February 27, 2025, it should be noted that the EU legislator in Article 83(2)(b) of Regulation 2016/679 (not using the term "guilt" in the literal sense) requires the supervisory authority to take into account the intentional or unintentional nature of the violation when assessing the justification for imposing a penalty and its amount. It is worth emphasizing that this is in no way equivalent to a prohibition on imposing an

administrative monetary penalty in the case of an unintentional violation – this aspect, however, influences the decision made by the authority in this regard. Furthermore, it is difficult to agree with the position of the Company expressed in point I of the aforementioned letter, according to which "The action of Poczta Polska S.A. was (only) to request the Minister of Digitization to provide personal data." The Company processed the data provided to it until their deletion, which occurred between May 15-22, 2020 (the President of the UODO accepted the earlier explanations of the Company in this regard), and even if this thought was elaborated by the Company in point VI of its letter, such a statement should not create a misleading impression at the beginning of the letter about the minimal involvement of the Company in the violation of the provisions of Regulation 2016/679. At this point, it should also be noted that due to the scope of this administrative proceeding, the circumstances mentioned in point I of this letter regarding the security of the data processed by the Company, or the fact of processing them in a minimal manner, as well as the fact that the Company has access to the PESEL register on bases other than those on which the Company and the Minister acted in the examined matter, are of no additional significance.

88. In point II of the letter dated February 27, 2025, the Company discussed Article 99 of the Act on the Information System for the Support of the Administration as the legal basis for its actions. However, in light of the judgments issued by the WSA and NSA mentioned in points 11 and 12 above, which bind the supervisory authority, and also considering the argumentation presented so far in this decision regarding the illegality of the actions of the Minister and the Company in the scope covered by this proceeding, it would be unnecessary to repeat the argumentation of the supervisory authority in response to the statements of the Company. In light of the above, the statements of the Company regarding which of the bases specified in Article 99 of the Act on the Information System for the Support of the Administration led to the provision of its personal data by the Minister on April 22, 2020, as well as regarding the presumption of the constitutionality of this provision, are also of no significance in the assessment of the supervisory authority. The evidence attached by the Company to the letter dated February 27, 2025, in the form of a decision of the President of the Office of Electronic Communications on the selection of the designated operator for the years 2016-2025 does not contribute anything significant to the case, and the content of this decision is widely known. Considering the argumentation presented by the President of the UODO, it is also impossible to agree with the statement of the Company contained in point II of the aforementioned letter that: "The considerations raised in public discourse, including in the judgments of administrative courts and the Supreme Administrative Court, regarding the defects of the Decision of the President of the Council of Ministers, have minimal significance for this proceeding and do not determine the illegality of the acquisition of personal data by Poczta Polska S.A."

89. In point III of the letter dated February 27, 2025, the Company presented its position regarding "The Nature of the Decision of the President of the Council of Ministers," indicating that it was subject to immediate execution upon its delivery and did not require justification, and that the Company had no possibility arising from legal provisions to oppose the execution of the Decision of the President of the Council of Ministers. In reference to the aforementioned claims, the President of the UODO considers it unnecessary to repeat the extensive analysis regarding the nature of the Decision of the PRM of April 16, 2020, previously conducted in the judgments of the WSA and NSA mentioned in point 11 of this decision – which analysis the supervisory authority fully agrees with. However, it should be noted in passing that there is no justification in either the factual or legal state for the Company's claim regarding the lack of possibility to oppose the order resulting from the aforementioned administrative decision. The Company, as a party to the administrative proceeding concluded with the issuance of the aforementioned resolution of the public administration authority, could, using the rights granted to it under the provisions of the Administrative Procedure Code, request the authority that issued the decision to reconsider the case (Article 127 § 3 of the Administrative Procedure Code) – a possibility that the Company itself pointed out in the letter submitted to the supervisory authority – as well as submit a request for the supplementation of the decision regarding its resolution (Article 111 § 1 of the Administrative Procedure Code) or a request for clarification of doubts regarding the content of the decision (Article 113 § 2 of the Administrative Procedure Code). However, the Company did not make

use of any of these rights, despite justified...

of the law. The doubts regarding the compliance of the Decision of the Prime Minister (PRM) dated April 16, 2020, with the applicable legal provisions at that time—doubts that also emerged on the part of the Company—should be derived from the Information dated April 23, 2021, regarding the results of the audit conducted by the Supreme Audit Office concerning the actions of selected entities in connection with the preparation of the general elections for the President of the Republic of Poland scheduled for May 10, 2020, using postal voting, which is known to the supervisory authority ex officio as it is publicly available. As indicated in the aforementioned document, “the Company commissioned the preparation of three legal opinions in the context of the tasks and responsibilities of the Members of the Management Board of the Company in connection with the implementation of the order contained in the PRM decision of April 16, 2020. (...) In the legal opinion dated April 23, 2020, prepared by the Legal Office and Owner Supervision of PP S.A., it was indicated (...) that the Members of the Management Board are obliged to act diligently in a situation where the law on specific principles for conducting elections had not yet been enacted. Consequently, it was recommended (...) to conduct an analysis of the decision (...) regarding the justification for its appeal, particularly in the context of its compliance with the law.” In light of the above, the Company's initiation of activities related to the acquisition of personal data of voters from the PESEL register—despite not having previously exercised its rights enabling it to challenge the administrative decision addressed to it—should be considered in terms of the Company's discretion. Consequently, the allegations raised by the Company, mentioned at the beginning of this paragraph, should be deemed unfounded.

90. Furthermore, in point IV of the letter dated February 27, 2025, the Company presented its position citing “the presumption of constitutionality of the law and the presumption of legality of the administrative decision.” However, it is impossible to agree with the argument contained in this point of the Company's letter that “Poczta Polska S.A., when acquiring personal data in April 2020, had no legal grounds to challenge and consequently did not execute the tasks arising from Article 99 of the Special Act and the Decision of the Prime Minister. The subsequent declaration of invalidity of the Decision has no bearing on the assessment of the acquisition of personal data based on the provisions of Article 99 of the Special Act (the compliance of which with the Constitution has not been questioned) and the Decision of the Prime Minister, which at that time enjoyed the presumption of legality.” The declaration of invalidity of the PRM Decision of April 16, 2020, by the Administrative Court (subsequently confirmed by the Supreme Administrative Court) is closely related to the recognition by these courts of the ineffectiveness of the actions of the Minister from April 22, 2020, regarding how he provided the Company with personal data from the PESEL register. The arguments presented in point IV of the letter dated February 27, 2025, should be considered irrelevant in the assessment of the President of the Personal Data Protection Office (UODO) in the context of the arguments presented by him in this decision and in connection with the fact that the Administrative Court and the Supreme Administrative Court issued the judgments referred to in points 11 and 12 of this decision. For the same reasons, the supervisory authority also deems the arguments presented by the Company in point V of the letter dated February 27, 2025, regarding the confirmation by the Constitutional Tribunal of the compliance of Article 11 of the COVID-19 Act (incorrectly marked by the Company in this letter) with the Constitution of the Republic of Poland to be irrelevant.

91. In point VI of the letter dated February 27, 2025, the Company presented its position regarding the scope of action and the submission of its application to the Minister: “This circumstance remains crucial. The provision of personal data by a government administration body (the Minister of Digital Affairs) should be assessed differently than the request for their provision made by Poczta Polska S.A., against which coercion resulting from public authority was exercised. Poczta Polska S.A. was—based on the law applicable at that time—obliged to request personal data, under the threat of state coercion in accordance with the law.”

administrative enforcement (cf. judgment of the Supreme Administrative Court of September 10, 2014, I OSK 229/13). The Minister of Digital Affairs acted without an analogous order.” In the opinion of the President of the Personal Data Protection Office (UODO), the argumentation presented by the Company does not merit consideration. Of course, the supervisory authority recognizes the difference

between the degree of responsibility of the Minister and the Company for the violations of the provisions of Regulation 2016/679 attributed to them in this proceeding – which the authority expressed in the further part of the justification of this decision, dedicated to the assessment of the seriousness of these violations (see points 126 and 147 of the justification). Nevertheless, it should be stated that the situation in which the Company found itself did not exempt it from the obligation to respect the constitutional rights of citizens, including the right to personal data protection, specified in the provisions of Regulation 2016/679. This assessment is not altered by the fact that the Decision of the Prime Minister addressed to the Company dated April 16, 2020, was subject to immediate execution. It should be noted that the general wording of the order addressed to the Company, or more precisely, the lack of indication in the decision of specific executive actions that the Company should have undertaken to implement this order, rendered this decision defective – and consequently unfeasible. Such an assessment was presented by the Supreme Administrative Court in the judgment referred to in point 11 of this decision, explaining that “(t)he lack of possibility to determine what specific actions the addressee of the order should undertake (...) prevents its potential compulsory execution under the provisions of the Act on Administrative Enforcement Proceedings. (...) An analysis of the content of the Decision of the Prime Minister dated April 16, 2020, leads to the conclusion that (...) its content does not allow (...) to identify the nature and scope of the task imposed on Poczta Polska. (...) Consequently, it is impossible to indicate the conditions under which Poczta Polska would be exempt from liability for non-implementation of the decision, depriving the authority of the possibility to implement a compulsory procedure for its execution.” The position of the Supreme Administrative Court, to which the President of UODO is bound, unequivocally determines that the compulsion to fulfill the obligation imposed on the Company by the aforementioned administrative decision – due to the exclusively framework formulation of this obligation – was, in fact, illusory.

92. In point VII of its letter dated February 27, 2025, the Company referred to the position presented by the President of UODO in April 2020 and attached a printout from the website where it was published. It also pointed out the earlier issuance by the supervisory authority of a decision to discontinue the proceedings regarding the complaint about the provision of personal data of an individual to the Company by the Minister (also attaching a copy of this decision). Contrary to what the Company argued in this point, in the opinion of the President of UODO, the change in the position he adopted does not determine the complexity of the case. The change brought about by the judgments issued by the Administrative Court and the Supreme Administrative Court, mentioned in points 11 and 12 of this decision, must have had an obvious impact on the position adopted by the President of UODO (inter alia, in connection with the applicability of Article 170 of the Act on Proceedings Before Administrative Courts). This modification could not have caused surprise on the part of the Company, which was a participant in the court proceedings culminating in the issuance of these judgments. Therefore, the argumentation of the Company and the evidence it attached in this regard (i.e., the aforementioned printout and the copy of the decision) have no impact on the content of this decision. Similarly, the argumentation of the Company contained in point VIII of the letter dated February 27, 2025, referring to the position of the National Electoral Commission from 2020, along with the evidence: a copy of the letter dated April 23, 2020 (reference number: (...)). It is worth noting in passing that this letter referred to the provision of data from the electoral roll and was to be directed to local governments.

93. In point IX of the letter dated February 27, 2025, the Company raised arguments concerning the principle of trust in public authority arising from Article 8 of the Code of Administrative Procedure. It indicated, among other things, that “In the circumstances that occurred in April and May 2020, Poczta Polska S.A. had every right to remain in the justified belief that there were no doubts about the legality of acquiring and processing personal data.” According to the supervisory authority, for a proper assessment of its proceedings, it should be taken into account that the violation of the principle of trust in public authority could be considered in the current situation as the authority's omission of the judgments referred to in points 11 and 12 of this decision. The President of UODO, as rightly noted by the Company in its letter, has the right to change his view – however, it is pointed out that this change must be justified: “In judicial rulings, the following actions of public administration bodies are considered to violate the principle of citizens' trust in state authorities (public authority): (...) the

variability of legal opinions expressed in decisions of administrative bodies concerning the same addressee, issued against the backdrop of the same factual states, indicating the same legal basis for the decision and without a closer justification for such a change – judgment of the Supreme Administrative Court in Łódź of April 8, 1998, I SA/Łd 652/97, ONSA 1999/1, item 27 (...)” (A. Wróbel [in:] M. Jaśkowska, M. Wilbrandt-Gotowicz, A. Wróbel, Updated Commentary to the Code of Administrative Procedure, LEX/el. 2025, Article 8). However, the President of UODO cannot be accused of failing to justify in this decision the change of the position adopted in April 2020, which, moreover, took the form of a public announcement, rather than an administrative ruling directed to the party. In this context, it is also worth noting that the repeatedly mentioned Article 170 of the Act on Proceedings Before Administrative Courts refers to judgments issued by administrative courts. Therefore, it cannot be applied to the judgment of the District Court in Warsaw of August 21, 2024, case file XXIV C 1611/20, which the Company referred to in point X of the letter dated February 27, 2025. For this reason (and also due to the fact that the indicated judgment is not final), the argumentation of the Company indicating, among other things, that: “(...) The Court had no doubts about the unlawful actions of Poczta Polska S.A.” is irrelevant in this case, and the evidence in the form of a copy of this judgment presented by the Company has no impact on the content of this decision.

94. In point XI of the letter dated February 27, 2025, the Company emphasized, among other things, that “In order to determine the scope of personal data processing, the duration of processing, the categories of personal data, and the security measures, Poczta Polska S.A. submitted requests in a letter dated February 25, 2025.” It added: “While maintaining the position that the actions of Poczta Polska S.A. were not unlawful, I indicate, however, that establishing all circumstances is necessary for the proper, compliant with the Administrative Procedure Code, examination of this case.” To avoid unnecessary repetitions, the President of UODO refers in this context to his arguments already raised, among others, in section IV.A of this decision. At the end of point XI of the aforementioned letter, the Company indicated that “(...) The Minister of the Interior, by decision dated September 8, 2014, reference number (...) expressed consent for Poczta Polska S.A. to access data from the PESEL database via data transmission devices to perform statutory tasks” and attached evidence in the form of a copy of the decision of the Minister of the Interior dated September 8, 2014 (reference number (...)). Since the administrative proceedings conducted in this case concern the provision of personal data to the Company by the Minister of Digitization from the PESEL register, citing entirely different grounds, this last argument of the Company and the evidence it attached have no impact on the content of the decision in question.

95. In the concluding part of the letter, the Company further raised that: “According to Article 7a § 1 of the Administrative Procedure Code, if the subject of the administrative proceedings is the imposition of an obligation on a party or the limitation or deprivation of a party's rights, and there are doubts regarding the content of the legal norm, these doubts are resolved in favor of the party, unless conflicting interests of the parties or the interests of third parties, which are directly affected by the outcome of the proceedings, oppose this. In the opinion of Poczta Polska S.A., it is necessary to supplement the evidentiary proceedings, and based on the duly established factual state, the Authority will have no doubts that there was no violation of personal data protection regulations by Poczta Polska S.A.” In the opinion of the President of UODO, the statement made by the Company suggesting the existence of doubts justifying such a resolution is completely unfounded in light of the extensive arguments presented by him in this decision, which also take into account the fact of the supervisory authority being bound by final judgments referred to in points 11 and 12 of this decision. In summary, it should be indicated that the Company's request to establish that: 1) Poczta Polska S.A. did not violate personal data protection regulations, and consequently, there are no grounds for an administrative monetary penalty, or alternatively 2) the actions of Poczta Polska S.A. were not unlawful, and consequently, there are no grounds for imposing an administrative monetary penalty, is unfounded. For the reasons discussed extensively in both sections IV.A and IV.B of this decision, the requests for the presentation of evidence indicated by the Company in the letters discussed in the aforementioned sections of this decision should also be deemed unfounded.

V. Administrative monetary penalties.

96. The administrative proceedings conducted by the President of UODO serve to control the compliance of data processing with personal data protection regulations and are aimed at issuing an administrative decision to apply the corrective powers specified in Article 58(2) of Regulation 2016/679.

97. In light of the above, as well as the violations of personal data protection regulations established in these proceedings, the President of UODO – exercising the power specified in Article 58(2)(i) of Regulation 2016/679, according to which each supervisory authority has the power to impose, in addition to or instead of the measures referred to in Article 58(2)(a)-(h) and (j) of this Regulation, an administrative monetary penalty specified in Article 83(5)(a) – determined that the conditions justifying the imposition of an administrative monetary penalty on both the Minister and the Company have materialized in the case at hand.

98. According to Article 83(5)(a) of Regulation 2016/679, violations of the provisions concerning the fundamental principles of processing, including the conditions for consent, referred to in Articles 5, 6, 7, and 9, are subject to an administrative monetary penalty of up to 20,000,000 EUR, and in the case of an enterprise – up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount applying.

99. Furthermore, according to Article 102(1)(1) of the Act on Personal Data Protection, the President of UODO may impose, by way of a decision, administrative monetary penalties of up to 100,000 PLN on entities in the public finance sector referred to in Article 9(1-12 and 14) of the Act of August 27, 2009, on public finances (Journal of Laws of 2024, item 1530, as amended). This limit will undoubtedly apply in this case to the Minister, as a public authority, and more specifically – to a government administration authority. The administrative monetary penalties referred to in paragraphs 1 and 2 are imposed by the President of the Office based on and under the conditions specified in Article 83 of Regulation 2016/679 (Article 102(3) of the Act on Personal Data Protection).

V.A. Behaviors subject to administrative monetary penalties and the application of Article 83(3) of Regulation 2016/679.

100. According to the wording of Article 83(3) of Regulation 2016/679, if the administrator or processor intentionally violates...

unintentionally within the same or related processing operations several provisions of this regulation, the total amount of the administrative monetary penalty does not exceed the amount of the penalty for the most serious infringement.

101. The term "processing operations" referred to in Article 83(3) of Regulation 2016/679 has been explained in Article 4(2) of Regulation 2016/679, where "processing" is defined as "an operation or set of operations performed on personal data or sets of personal data, whether automated or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction." Therefore, a processing operation will consist of any action to which data is subjected until its deletion, loss, or destruction.

102. Guidelines for identifying the "most serious infringement" are contained in the EDPB Guidelines 04/2022 on calculating administrative monetary penalties under the GDPR (version 2.1) adopted on May 24, 2023, hereinafter referred to as "Guidelines 04/2022." According to the position expressed therein, "the formulation 'the amount of the penalty for the most serious infringement' refers to the statutory maximum amounts of monetary penalties" specified in Article 83(4)–(6) of Regulation 2016/679 (see point 43 of Guidelines 04/2022). Thus, the most serious infringement in an individual case will be that for which the EU legislator has provided a higher threshold for the maximum administrative monetary penalty.

103. Given that both administrators involved in this case committed an infringement of Article 6(1) of

Regulation 2016/679, resulting in a simultaneous infringement of Article 5(1)(a) of Regulation 2016/679, the President of the UODO was obliged to consider the regulation mentioned in the preceding paragraph to determine whether the circumstances of this case warrant the supervisory authority's use of only one or several remedial measures provided for in Article 58(2) of Regulation 2016/679 – more precisely, whether the authority should impose only one administrative monetary penalty on each of the administrators as a response to all the infringements committed by them, or separate and independent penalties for each of those infringements considered separately.

104. In determining specific sanctions for the behaviors identified in this case that violate the provisions of Regulation 2016/679, the President of the UODO took into account that the infringements attributed to both the Minister and the Company were committed within the framework of the same processing operations. The action of the Minister in providing the Company with personal data of voters from the PESEL register, as well as the action of the Company in obtaining and processing that data in connection with the actions taken to prepare for the conduct of the Presidential elections in the Republic of Poland in 2020 by mail, were indeed one-off actions undertaken as a result of a single decision by the administrator and aimed at achieving one predetermined goal. At the same time, these actions concerned the same set of data. Both described processing operations (i.e., the provision of data on one side and their processing on the other) were not based on legal provisions, as both administrators did not have any of the valid grounds for processing listed exhaustively in Article 6(1) of Regulation 2016/679 at the time of data transfer. The failure to meet even one condition of compliance with the law for the processing of personal data directly resulted in a violation of the norm expressed in Article 5(1)(a) of Regulation 2016/679, according to which personal data must be processed lawfully, fairly, and in a transparent manner in relation to the data subject. It should be noted that the cited Article 5(1)(a) of Regulation 2016/679 establishes a general principle of personal data processing, which sets the framework for the entire data protection system. Compliance with the law in processing, understood as a superior concept, has been specified in the other provisions of Regulation 2016/679, which establish specific obligations – addressed to administrators and processors – and correlate with them the rights of data subjects. Such a provision that undoubtedly specifies this is also Article 6(1) of Regulation 2016/679. In this context, it should be clarified that the finding of a violation of the provisions defining the fundamental, general principles of processing (in this case – Article 5(1)(a)) does not preclude attributing to the administrator a violation of specific provisions that constitute a specification of those principles (in this case – Article 6(1)) and imposing a financial sanction for it.

105. Therefore, having established that in the analyzed factual state both administrators violated more than one provision of Regulation 2016/679 (Article 6(1), and consequently also Article 5(1)(a)) within the same processing operations, and that none of the identified infringements excludes – in the opinion of the President of the UODO – the possibility of attributing the second of them to the administrators, in this proceeding the responsibility of both the Minister and the Company should be shaped "in parallel" in relation to all the infringements committed by the aforementioned. In such a situation, the provision of Article 83(3) of Regulation 2016/679 will apply.

106. In summary, in this case, the administrative monetary penalty was imposed on the Company for the infringement of Article 5(1)(a) and Article...

6 ust. 1 of Regulation 2016/679. With respect to both of these violations, Article 83(3) of Regulation 2016/679 was applied, noting that both violations are subject to (in abstracto) the same penalty as stipulated in Article 83(5)(a) of Regulation 2016/679, which can amount to up to 20,000,000 EUR or up to 4% of annual turnover – thus, these violations should be assigned the same level of seriousness. Consequently, it is not possible to impose a penalty for the aforementioned violations that exceeds the maximum penalty for one of them, i.e., the amount of (...) EUR – due to the necessity of adopting what is referred to as the "dynamic maximum penalty" concerning the Company (see point 146 of the reasoning).

107. Conversely, the administrative fine imposed on the Minister was applied for the violation of Article 5(1)(a) and Article 6(1) of Regulation 2016/679, based on Article 83(5)(a) of Regulation 2016/679. This penalty, assessed collectively for the violation of both of the above provisions – in accordance with the

wording of Article 83(3) of Regulation 2016/679 – cannot exceed the amount of the penalty for the most serious violation identified in this case. Given that both violations attributed to the Minister are categorized under Article 83(5)(a) of Regulation 2016/679, which provides for the same maximum threshold for administrative fines, these violations should also be assigned the same level of seriousness. Consequently, the penalty imposed on the Minister cannot exceed the limit set for one of these violations, i.e., the amount of 100,000 PLN, established in Article 102(1)(1) of the Act on the Protection of Personal Data concerning public authorities and other public entities.

V.B. Justification for the Imposition and Determination of the Amount of the Administrative Fine Imposed on the Minister

Conditions for the Penalty Assessment – Application of Article 83(2) of Regulation 2016/679

108. In deciding to impose an administrative fine on the Minister, the President of the UODO – in accordance with the provisions of Article 83(2)(a) - k) of Regulation 2016/679 – took into account the following circumstances of the case, which necessitate the application of this type of sanction in the present case and which weigh heavily on the assessment of the imposed administrative fine.

109. The nature, gravity, and duration of the violation, taking into account the nature, scope, or purpose of the processing, the number of affected individuals whose data are concerned, and the extent of the damage suffered by them (Article 83(2)(a) of Regulation 2016/679). The violations attributed to the Minister carry a very high weight and an exceptionally serious nature, as they undermine the fundamental principles of personal data processing, which are essential within the entire data protection system, defining its framework. In this context, the nature of the processing carried out by the central government administration in the performance of its public tasks should also be assessed as aggravating. The Minister, being the entity responsible for maintaining and developing the PESEL register – which constitutes the central and most important state database of personal data of individuals – should not only possess the highest knowledge of the law but also guarantee respect for the rights and freedoms of citizens (including those relating to the processing of their personal data contained in the register). Meanwhile, the aforementioned made a unilateral and authoritative decision to provide the Company with the personal data of all adults as of May 10, 2020, who, at the time of data generation, had registered Polish citizenship in the PESEL register, were listed as living individuals, and for whom Poland was indicated as the country of residence, despite the fact that his actions had no legal basis at the time of this disclosure – of which the Minister was aware (as explained extensively in point 110 of the reasoning).

The President of the UODO also considers the scope of the processing and the significant number of individuals affected by the violation as an aggravating circumstance. By fulfilling the Company's request from April 20, 2020, for the transmission of data from the PESEL register, the Minister provided information about nearly 30 million individuals holding Polish citizenship, which, in general terms, constituted almost 80% of the country's population. In light of the above information, indicating the Minister's processing of personal data on a massive scale – as although the scope of this processing was solely national, it concerned the vast majority of Polish society – the violations attributed to him should be assessed as systemic, which significantly impacts their weight.

Despite the lack of evidence indicating that the individuals whose data were concerned suffered material damages as a result of the identified violations, the President of the UODO took into account, as an aggravating circumstance affecting the assessment of the imposed fine, the possibility of non-material damages occurring on the part of the data subjects, such as particularly the fear or uncertainty arising from the inability to control their personal data – given the unlawful disclosure of their data to the Company. The correctness of the assessment made by the supervisory authority is supported by the content of the judgment of the Court of Justice of the EU of December 14, 2023, in the case of *Natsionalna agentsia za prihodite* (C-340/21, EU:C:2023:986), in which the Court emphasized that “[a]rt. 82(1) of the GDPR should be interpreted in such a way that the fear of potential misuse of personal data by third parties, which a data subject experiences following a breach of this regulation, may in itself constitute ‘non-material damage’ within the meaning of that provision.” Not

without significance in this context is the fact that the risk of non-material damages potentially affected all (approximately) 30 million individuals whose data were found. on the DVD provided to the Company – and certainly, this risk materialized in relation to those individuals who lodged complaints with the supervisory authority regarding irregularities in the processing of their personal data by the Minister and the Company, in connection with the organization of the Presidential elections of the Republic of Poland, which were to take place on May 10, 2020.

Due to the specificity of the violation consisting of the one-time provision of personal data to the Company, which occurred on April 22, 2020, the President of the UODO could not assess, within the framework of the analyzed criterion for the dimension of the penalty, the impact that the duration of the violation had on this criterion. Given this position, this circumstance should be considered neutral, meaning it had neither an aggravating nor a mitigating effect on the amount of the imposed administrative monetary penalty.

However, regardless of the above, taking into account the nature and seriousness of the identified violations, as well as the number of affected individuals whose data are concerned and the level of identified non-material damages, the criterion specified in Article 83(2)(a) of Regulation 2016/679, considered in a comprehensive manner, should be assessed as decidedly aggravating.

110. The intentional nature of the violation of the provisions of Regulation 2016/679 by the Minister (Article 83(2)(b) of Regulation 2016/679) It should be emphasized that in analyzing this criterion, the President of the UODO was also bound, in accordance with Article 170 of the Administrative Procedure Code, by the findings of the Administrative Court and the Supreme Administrative Court contained in the judgments mentioned in points 11 and 12 of this decision. Furthermore, he took into account the guidelines contained in Guidelines 04/2022, according to which intent "includes both knowledge and purposeful action, in connection with the characteristics of the prohibited act" (see point 55 of Guidelines 04/2022). In light of the above, the supervisory authority concluded that the Minister provided the Company with personal data of voters from the PESEL register, despite being aware of the illegality of such action.

It should be noted, in accordance with the position of the administrative courts expressed in the aforementioned judgments, that according to the provisions of the Electoral Code, in force at the time of the analyzed provision, the permanent highest electoral authority responsible for conducting elections and referendums was the National Electoral Commission (Article 157 § 1). The aforementioned was serviced by the National Electoral Office, whose tasks included ensuring organizational, administrative, financial, and technical conditions related to the organization and conduct of elections and referendums within the scope defined in the code and other laws (Article 187 § 1 and 2).

Additionally, the provisions of the Electoral Code – the application of which during the state of epidemic threat or epidemic, in conducting general elections for the President of the Republic of Poland in 2020, was, however, abolished as of April 18, 2020, by virtue of Article 102(4) of the Act on Special Principles for Conducting Elections – authorized only: electoral commissioners, election officials, as well as the Chief Sanitary Inspector and the Sanitary Inspection (Article 53b of the Electoral Code) to carry out activities aimed at preparing for the conduct of these elections by postal voting. The possibility of voting by mail was reserved for a narrow group of voters, namely voters with disabilities, voters in mandatory quarantine, isolation, or home isolation, and voters who would turn 60 years old at the latest on the day of voting (Article 53a of the Electoral Code). Although on April 6, 2020, the Sejm of the Republic of Poland passed a law on special principles for conducting general elections for the President of the Republic of Poland scheduled for 2020, providing for their conduct exclusively by postal voting concerning all voters with active voting rights (as mentioned in point 31 of the justification), this law came into force only on May 9, 2020, and thus after the date of the Minister's provision of data. According to the President of the UODO, it is undisputed that the Minister – being a member of the Council of Ministers – was aware of the ongoing legislative work on the mentioned legal act. This argument is further strengthened by the fact that the person who, at the time of the identified violations of the provisions of Regulation 2016/679, was the head of a public authority recognized in

this proceeding as the data controller (i.e., the then Minister of Digital Affairs, (...)), was serving as a member of the Sejm of the Republic of Poland of the IX term and participated in the voting on the draft of the aforementioned law, giving it his support. The Minister's knowledge of the legislative changes aimed at excluding the aforementioned provisions of the Electoral Code from application leaves no doubt that the Minister was aware that at the time of providing the Company with the personal data of voters from the PESEL register, the Company was not an entity authorized by law to undertake and carry out the necessary actions aimed at preparing for the conduct of the general elections for the President of the Republic of Poland in 2020. Moreover, the Minister was aware that no applicable statutory provision at that time allowed for the conduct of these elections exclusively by postal voting.

From the above, the President of the UODO concludes that the violations attributed to the Minister are intentional, which significantly affects the aggravating nature of the imposed administrative monetary penalty.

111. Any relevant prior violations by the administrator (Article 83(2)(e) of Regulation 2016/679) In deciding on the imposition and the amount of the administrative monetary penalty applied to the Minister, the President of the UODO took into account, as an aggravating circumstance, the fact of the Minister's prior violation of the provisions of Regulation 2016/679. It should be noted that as a result of complaints received from individuals regarding irregularities...

processing of their personal data by

the aforementioned, the supervisory authority issued the following

decisions: - decision of March 29, 2021, ref. no. (...), stating a violation of Article 12(3) of Regulation 2016/679, - decision of September 10, 2021, ref. no. (...), stating a violation of Article 5(1)(a) and (b) and Article 6(1) of Regulation 2016/679, - decision of January 4, 2024, ref. no. (...), stating a violation of Article 12(3) of Regulation 2016/679.

The aforementioned previous violations indicate

the existence of certain problems within the structures of the administrator regarding

the fulfillment of obligations arising from the provisions of Regulation 2016/679. The Minister was

not able in the aforementioned individual cases to demonstrate

to the supervisory authority the legality of processing

and timeliness in the implementation of the rights

of individuals whose data is concerned – which

resulted in the application of appropriate

remedial measures against the Minister. However, it should be noted that

the identified problems were not systemic or

recurrently occurring, but concerned individual situations. The fact that two of the violations identified in the aforementioned

proceedings were substantively different from those

examined in this case is also significant for the assessment of this premise. As explained by the EDPB,

"violations concerning the same subject should be considered more relevant than previous violations concerning a different subject" (see point 88 of Guidelines 04/2022). In light of the above, the

President of the UODO took the position that

the Minister's previous stance indicating

existing difficulties in complying with data protection regulations – to the extent that it is viewed

against the administrator and justifies the current

imposition of an administrative monetary penalty –

does not significantly affect the increase

of its amount.

112. Categories of personal data to which

the violation pertained (Article 83(2)(g) of Regulation

2016/679) The personal data provided to the Company by

the Minister included: PESEL number, first names, surnames,

last current address of permanent residence (and

in the absence of such: last outdated address), address of temporary residence (along with the declared duration of that residence), as well as currently registered temporary departure outside the country, of all adults as of May 10, 2020, who on the date of generation of this data had Polish citizenship registered in the PESEL register, and were also listed as living persons, for whom Poland was indicated as the country of residence. While among the aforementioned information provided to the Company there are no special categories of data defined in Articles 9 and 10 of Regulation 2016/679 – which are subject to special protection, and thus a more stringent response from the supervisory authority when imposing monetary penalties – the broad scope of this data, allowing for the immediate identification of the individuals concerned, necessitates treating this premise as aggravating. In this context, it is worth recalling the position of the EDPB, according to which "the greater the number of such categories of data involved in the violation or the more sensitive the data, the greater weight the supervisory authority may assign to such a factor. The amount of data concerning each individual whose data is concerned is also significant, as the scale of the violation of the right to privacy and data protection increases with the amount of data concerning each individual" (see points 57-58 of Guidelines 04/2022).

It should also be emphasized that the violations of personal data protection concerned the PESEL identification number, which is an eleven-digit numerical symbol that uniquely identifies a natural person, containing, among other things: date of birth and gender designation, and thus closely related to the private sphere of the individual and also subject to, as a national identification number, exceptional protection under Article 87 of Regulation 2016/679.

The unlawful disclosure of such information to the Company, particularly in conjunction – as was the case in the present matter – with a broader set of personal data, could realistically and negatively impact the protection of the rights or freedoms of individuals.

The same applies to the special nature of the identification information, such as the PESEL identification number, and the associated call for its special protection was expressed by the Supreme Administrative Court, which in its judgment of December 6, 2023, ref. no. III OSK 2931/21, noted that the disclosure of "(...) data including first names and surnames, as well as PESEL numbers of individuals, and thus relatively permanent, unchanging data (...) always carries the risk of negative consequences for the aforementioned individuals. Similarly, addresses of residence are personal data, the unauthorized disclosure of which creates a high probability of negative legal consequences."

113. Any other aggravating or mitigating factors applicable to the circumstances of the case (Article 83(2)(k) of Regulation 2016/679) To the detriment of the Minister, the supervisory authority also considered

the consequences of the violations attributed to him observable in the social dimension. The disclosure by a public authority to the Company of personal data of Polish citizens who were entitled to exercise their active electoral rights in the presidential elections of the Republic of Poland on May 10, 2020 – widely commented on in both traditional and social media, due to justified doubts regarding the legality of the described actions

of the Minister – caused anxiety and uncertainty among citizens regarding the predictability of actions by state authorities and became the reason for numerous protests and demonstrations. As a result, the behavior of the Minister subject to sanction in this case contributed to the deepening of the phenomenon of lack of trust. citizens to public authority bodies, as well as regarding the effectiveness of the state system for the protection and safeguarding of personal data, thereby increasing the significance of the violations attributed to the Minister.

114. In determining the amount of the administrative monetary penalty, the President of the UODO took into account, in favor of the Minister, within the framework of the criterion concerning any other aggravating or mitigating factors applicable to the circumstances of the case (Article 83(2)(k) of Regulation 2016/679), the fact that the aforementioned actions aimed at eliminating the effects of the violations attributed to him had been undertaken. Such actions include the issuance of a summons to the Company on May 12, 2020, to submit a declaration of the permanent deletion of the data provided to the Company on April 22, 2020, from the PESEL register and all its copies. Given that the Company's initiation of processes related to data deletion only occurred on May 15, 2020, it can be assumed that it was indeed the Minister's intervention that initiated the Company's first actions in this regard. Thus, this circumstance was recognized as mitigating, i.e., having an impact on reducing the amount of the administrative monetary penalty imposed on the Minister.

115. Other circumstances indicated below, referred to in Article 83(2) of Regulation 2016/679, after assessing their impact on the established violation in this case, were deemed neutral by the President of the UODO, meaning that they had neither an aggravating nor a mitigating effect on the amount of the imposed administrative monetary penalty.

116. Actions taken to minimize the damage suffered by the data subjects (Article 83(2)(c) of Regulation 2016/679) In the context of this criterion, the purpose of the administrator's action is significant, namely to minimize the damage suffered by the data subjects. The President of the UODO did not record any such actions by the Minister in this case, which is why he assessed this criterion as neutral. This assessment is not altered by the fact that the Minister requested the Company to submit a declaration regarding the deletion of the personal data provided to it, the consequence of which was the cessation of processing these data by the Company. To the extent that the removal of the state of violation of the provisions of Regulation 2016/679 could fundamentally lead to the end of the state of concern on the part of the data subjects arising from the loss of control over their data – these actions were not communicated to the public in any way, and therefore could not achieve the expected effect.

117. The degree of responsibility considering the technical and organizational measures implemented by him under Articles 25 and 32 of Regulation 2016/679 (Article 83(2)(d) of Regulation 2016/679) Due to the nature of the violations of the provisions of Regulation 2016/679 established in this case (disclosure of personal data from the PESEL register, despite the lack of a legal basis) – which violations in essence are not related to the technical and organizational measures applied by the administrator, but solely to the assessment of the correctness of the interpretation of the provisions legalizing this processing made by the Minister – it should be accepted that the criterion indicated in Article 83(2)(d) of Regulation 2016/679 has no aggravating or mitigating effect on the amount of the imposed administrative monetary penalty. It is not significant in assessing the Minister's violation of the provisions of Article 5(1)(a) and Article 6(1) of Regulation 2016/679.

118. The degree of cooperation with the supervisory authority in order to remedy the violation and mitigate its potential negative effects (Article 83(2)(f) of Regulation 2016/679) The President of the UODO wishes to emphasize that the behavior of the Minister subject to sanction in this case, which was inherently a one-time and irreversible action, fundamentally excluded the possibility of remedying the violations attributed to him. Furthermore, at the time of initiating this administrative proceeding, the personal data disclosed by the Minister were not being processed by the Company, which had deleted them without prior action or intervention from the supervisory authority. Consequently, at this stage, there is no possibility to assess the degree of cooperation of the Minister with the President of the

UODO in order to remedy the violation and mitigate its potential negative effects. The factual state presented in this manner cannot constitute an aggravating or mitigating circumstance when imposing sanctions.

119. The manner in which the supervisory authority became aware of the violation, in particular, whether and to what extent the administrator or processor reported the violation (Article 83(2)(h) of Regulation 2016/679) The supervisory authority became aware of the violation by the Minister of the provisions of Regulation 2016/679 as a result of complaints received from individuals, also obtaining information from publicly available media. Given that the reported unlawful behavior of the administrator does not constitute a "personal data breach" within the meaning of Article 4(12) of Regulation 2016/679 – i.e., a security breach leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure, or unauthorized access to personal data transmitted, stored, or otherwise processed – the Minister was not obliged to report it to the supervisory authority in the manner provided for in Article 33 of the discussed legal act. It should be noted that the provisions of Regulation 2016/679 do not impose a similar obligation on administrators in the event of a violation that does not result in a disruption of the security of the processed personal data.

****120.**** If measures referred to in Article 58(2) have previously been applied to the administrator in the same case – compliance with these measures (Article 83(2)(i) of Regulation 2016/679) – prior to issuing this decision, the President of the UODO did not apply any measures listed in Article 58(2) of Regulation 2016/679 against the Minister in the case under consideration, which means that the Minister was not obliged to take any actions related to their application, actions that, when assessed by the supervisory authority, could have a burdensome or mitigating effect on the assessment of the established violation.

****121.**** The application of approved codes of conduct under Article 40 or approved certification mechanisms under Article 42 (Article 83(2)(j) of Regulation 2016/679) – As of the date of this decision, the Minister did not apply any approved codes of conduct or approved certification mechanisms mentioned in the provisions of Regulation 2016/679. However, their adoption, implementation, and application are not – as stipulated by the provisions of Regulation 2016/679 – mandatory for administrators, which means that the circumstance of their non-application cannot be interpreted against the Minister in this case. On the other hand, the circumstance of adopting and applying such instruments could be taken into account in favor of the Minister as means guaranteeing a higher than standard level of protection for personal data processing; however, such a circumstance did not occur in this case.

****122.**** Financial benefits obtained directly or indirectly in connection with the violation or losses avoided (Article 83(2)(k) of Regulation 2016/679) – During the proceedings, no impact of the violation of the provisions of Regulation 2016/679 on the Minister's achievement of financial benefits or avoidance of losses was established. Therefore, there are no grounds for treating this circumstance as burdensome. The establishment of measurable financial benefits resulting from the violation of the provisions of Regulation 2016/679 should be assessed very negatively. The Minister's failure to achieve such benefits, as a natural state independent of the violation and its consequences, is a circumstance that, by its very nature, cannot be mitigating. This interpretation is confirmed by the very wording of Article 83(2)(k) of Regulation 2016/679, which requires the supervisory authority to pay due attention to the benefits "obtained" – that occurred on the part of the entity committing the violation.

****Establishing the amount of the fine using Guidelines 04/2022****

****123.**** In determining the amount of the administrative fine imposed on the Minister in this case, the President of the UODO applied, in a limited manner, the methodology adopted by the EROD in Guidelines 04/2022. The limited scope of application of these guidelines for calculating fines imposed on authorities and public entities results from the inability to adopt the turnover (revenue) of such an entity as a measure of its size allowing for the calibration of the fine amount, so that it is effective, proportional, and deterrent. As indicated by the EROD in point 10 of its guidelines, if under national law supervisory authorities have the power to impose administrative fines on authorities and public entities, these guidelines apply to their calculation, except for Chapter 4.3 of this document ("Turnover of the

enterprise for the purpose of imposing an effective, deterrent, and proportional monetary penalty"). Where national law provides for statutory maximum amounts of fines for authorities and public entities (other than those resulting from Articles 83(4)-(6) of Regulation 2016/679), Chapter 6 of the guidelines ("Legally defined maximum amount of the monetary penalty and liability of enterprises") will not apply. Therefore, taking the above into account, the President of the UODO made the calculation of the fine imposed on the Minister as presented below.

****124.**** As the legally defined maximum amount of the fine that can be imposed on the Minister, the President of the UODO adopted – in accordance with Article 102(1)(1) of the u.o.d.o. – the amount of 100,000 PLN, which applies regardless of which provision of Regulation 2016/679 the violation concerns.

****125.**** The President of the UODO categorized the violation of the provisions of Regulation 2016/679 established in this case (see Chapter 4.1 of Guidelines 04/2022). Violations of both Article 5 and Article 6 of Regulation 2016/679 belong – according to Article 83(5)(a) of Regulation 2016/679 – to the category of violations subject to a higher penalty of the two provided for in this legal act (with a maximum amount of up to 20,000,000 EUR or up to 4% of the enterprise's turnover from the previous financial year). They are therefore in abstracto "the most serious" of the violations provided for by Regulation 2016/679; they are more serious than the second group of violations subject to administrative monetary penalties (indicated in Article 83(4) of Regulation 2016/679).

****126.**** The President of the UODO assessed the violation established in this case as a violation of high severity (see Chapter 4.2 of Guidelines 04/2022). In this assessment, the factors among those listed in Article 83(2) of Regulation 2016/679 that pertain to the subject matter of the violation (constituting the "seriousness" of the violation) were taken into account, namely: the nature, gravity, and duration of the violation (Article 83(2)(a) of Regulation 2016/679), the intentional or unintentional nature of the violation (Article 83(2)(b) of Regulation 2016/679), the categories of personal data affected by the breach (Article 83(2)(g) of Regulation 2016/679). A detailed assessment of these circumstances has been presented above (see paragraphs 109, 110, and 112 of the reasoning). At this point, it should only be noted that considering their cumulative impact on the assessment of the breach established in this case leads to the conclusion that the level of its seriousness (understood in accordance with Guidelines 04/2022) is high. Consequently, the starting amount for calculating the fine is set within the range of 20% to 100% of the maximum fine that can be imposed on the Minister (see paragraph 60, third indent of Guidelines 04/2022), that is – considering the maximum amount of 100,000 PLN specified for public authorities and entities (see paragraph 124 of the reasoning) – from 20,000 PLN to 100,000 PLN. The President of the UODO deemed the starting amount of 90,000 PLN (90% of the legally defined maximum fine that can be imposed on the Minister) to be appropriate and justified by the circumstances of this case.

127. The President of the UODO assessed the impact on the established breach of the other circumstances (besides those considered above in the assessment of the seriousness of the breach) indicated in Article 83(2) of Regulation 2016/679 (see Chapter 5 of Guidelines 04/2022). These circumstances, which may have an aggravating or mitigating effect on the assessment of the breach, relate – as assumed by Guidelines 04/2022 – to the subjective side of the breach (to the entity itself that committed the breach and to its behavior before, during, and after the breach occurred) and possibly to other circumstances that may be relevant to its assessment. A detailed assessment and justification of the impact of each of these factors on the assessment of the breach have been presented above (see paragraphs 111 and 113-122 of the reasoning). It should only be noted here that two of them had – in the opinion of the President of the UODO – an aggravating effect on the determination of the imposed fine: the relevant previous breaches of the provisions of Regulation 2016/679 established by the President of the UODO (Article 83(2)(e) of Regulation 2016/679) and the negative effects of the breach occurring in the social sphere (Article 83(2)(k) of Regulation 2016/679). One factor, on the other hand, had a minor mitigating effect on the amount of the fine – the voluntary action taken by the Minister to mitigate the negative effects of the breach (Article 83(2)(k) of Regulation 2016/679). The remaining factors from Article 83(2) (letters c, d, f, h, i, and j of Regulation 2016/679) –

as indicated above – had neither a mitigating nor an aggravating effect on the assessment of the breach and consequently on the amount of the fine. Therefore, due to the existence of additional circumstances affecting the assessment of the breach, and thus the amount of the fine, the President of the UODO deemed it appropriate to further adjust the amount of the fine determined based on the assessment of the seriousness of the breach (see paragraph 126 of the reasoning). In the opinion of the President of the UODO, the appropriate adjustment to the total impact on the amount of the fine of all three aforementioned factors, significant for the assessment of the breach, will be a further increase in its amount – up to 100,000 PLN, that is to the legally defined maximum amount of the fine that can be imposed on the Minister.

128. According to Article 83(1) of Regulation 2016/679, each supervisory authority ensures that administrative fines imposed for breaches of this regulation are effective, proportionate, and dissuasive in each individual case. Moreover, Guidelines 04/2022 indicate that the last step in calculating the fine according to the methodology presented there should be to analyze whether the final amount of the calculated fine meets these requirements and to appropriately increase or decrease the fine. In conducting such an analysis in this case, the President of the UODO found that an administrative fine lower than 100,000 PLN, imposed in these specific, individual circumstances of the case, would not meet any of the aforementioned requirements. In his opinion, such a fine would not be, firstly, proportional to the very high seriousness of the breach and the overall assessment of the circumstances in which it was committed (see paragraphs 126 and 127 of the reasoning). It would also not be proportional to the size of the administrator, which is the managing body of a key ministry with substantial material and human resources and – importantly – responsible for the security of the largest databases of personal data in the country. Secondly, the fine at the aforementioned level would not be effective and dissuasive; in the opinion of the President of the UODO, it would not achieve the intended goals, namely, to realistically punish the Minister for his unlawful behavior and to deter both him and other administrators from committing the same or similar breaches in the future. It should be emphasized that the effectiveness and dissuasive nature of the monetary fine depend on its severity and real impact on the penalized entity. A fine lower than 100,000 PLN would not, in the opinion of the President of the UODO, be a realistically burdensome penalty for an entity such as the Minister of Digital Affairs. In light of the above, the President of the UODO stated that it would be unacceptable – due to the effectiveness, proportionality, and dissuasive nature of the imposed fine – to impose a fine on the Minister lower than 100,000 PLN, that is lower than the maximum amount of the fine provided for in Article 102(1)(1) of the Act on the Protection of Personal Data. The President of the UODO is also aware that a fine of 100,000 PLN will not be a fine that is realistically (in terms of financial impact) excessively burdensome for the Minister. However, imposing the fine at the maximum possible amount should be a clear expression of the President of the UODO's decisively negative assessment of the breach committed by the Minister (the authority). It is also worth emphasizing that the amount of the imposed fine results solely from the significant (in relation to the general principles of imposing administrative monetary penalties provided for by the provisions of Regulation 2016/679) the limitation of the penalty threat provided for public entities in Article 102(1) of the Act on the Protection of Personal Data. In the event of a monetary penalty being imposed on the Minister within the general threat defined in Article 83(5)(a) of Regulation 2016/679, this penalty – due to the very high severity and highly reprehensible nature of the violation – would have to be imposed in an amount many times exceeding 100,000 PLN. Under general principles, the maximum penalty threat for violations of the principles concerning the processing of personal data specified in Article 5 of Regulation 2016/679 and Article 6 of Regulation 2016/679, in accordance with Article 83(5)(a) of Regulation 2016/679, would amount to 20,000,000 EUR.

V.C. Justification for the imposition and determination of the amount of the administrative monetary penalty imposed on the Company

Conditions for imposing the penalty – application of Article 83(2) of Regulation 2016/679

129. In deciding to impose an administrative monetary penalty on the Company, the President of the Personal Data Protection Office (UODO) – in accordance with the provisions of Article 83(2)(a) - (k) of

Regulation 2016/679 – took into account the following circumstances of the case, which necessitate the application of this type of sanction in the present case and which have a burdening effect on the amount of the imposed administrative monetary penalty.

130. The nature, gravity, and duration of the violation, taking into account the nature, scope, or purpose of the specific processing, the number of affected individuals whose data are concerned, and the extent of the damage suffered by them (Article 83(2)(a) of Regulation 2016/679). The violations attributed to the Company have a very high weight and an exceptionally serious nature, as they undermine the fundamental principles of personal data processing, which are fundamental within the entire data protection system, defining its framework. It should be noted that Poczta Polska S.A., being a state-owned company and at the same time a designated operator for providing universal services for the years 2016-2025 (see point 6 of the justification), should – in connection with the performance of its public tasks – demonstrate the utmost diligence and respect for applicable legal provisions, including those concerning the protection of personal data. Additionally, as an entity designated by the Decision of the Prime Minister dated April 16, 2020, to undertake and carry out the necessary actions aimed at preparing for the conduct of the Presidential elections in the Republic of Poland in 2020 by postal voting, the Company should have conducted a thorough analysis of the legality of such action, as well as the process of processing these data, even before applying to the Minister of Digital Affairs with a request dated April 20, 2020, for the provision of personal data of voters from the PESEL register. This obligation, resting on every data controller under the provisions of Regulation 2016/679 (and the Company should undoubtedly be considered as such in the established factual state), was in no way diminished by the state of epidemic that was ongoing in the country at that time. It should be noted that the right to legal protection of private life, as well as the right to the protection of personal data – as rights guaranteed constitutionally – were not subject to any limitations in the analyzed context. It should be added in passing that according to the Constitution of the Republic of Poland, even during a state of war and emergency, the law defining the scope of limitations on freedoms and rights of individuals and citizens cannot restrict the right to privacy (see Article 233(1) of the Constitution of the Republic of Poland). The above necessitates a significant burdening assessment of the nature of the violations attributed to the Company.

The President of UODO also considers the scope of processing and the significant number of individuals affected by the violation as an aggravating circumstance. In order to implement the Decision of the Prime Minister dated April 16, 2020, the Company unlawfully obtained from the PESEL register the personal data of all adults as of May 10, 2020, who at the time of data generation (i.e., April 22, 2020) had registered Polish citizenship in the PESEL register, were listed as living persons, and for whom Poland was indicated as the country of residence. Thus, the Company processed – without a valid legal basis – information about approximately 30 million individuals holding Polish citizenship, which in general terms constituted almost 80% of the country's population. Although the scope of the analyzed processing was purely national (i.e., did not extend beyond state borders), its enormous scale, expressed in the processing of personal data of the vast majority of Polish society, necessitates assessing the attribution of violations to the Company as systemic, which significantly increases their weight.

As already indicated in the part of the justification of this decision dedicated to the reasons for imposing and determining the amount of the administrative monetary penalty imposed on the Minister of Digital Affairs (see point 109 of the justification), the supervisory authority did not find that the individuals whose data were concerned suffered material damages in connection with the identified violations. Nevertheless, the mere processing of personal data by the Company, despite the lack of a valid legal basis for it, caused the data subjects the possibility of incurring non-material damages, especially concerns and uncertainty arising from the inability to exercise control over their personal data. In particular, individuals whose data the Company processed in connection with the preparation for the conduct of the Presidential elections in the Republic of Poland in 2020 had no knowledge of how, and whether in accordance with legal provisions, this processing was taking place. The significance of the analyzed premise is heightened by the circumstance that the risk of incurring

non-material damages potentially concerned all (approximately) 30 million individuals whose personal data was on the DVD provided to the Company. Furthermore, this risk materialized in relation to those individuals who filed complaints with the supervisory authority regarding irregularities in the processing of their personal data by the Minister and the Company, in connection with the organization of the Presidential elections in the Republic of Poland, which were to take place on May 10, 2020. The relatively short duration of the violations, i.e., from the moment of obtaining the contested data from the PESEL register on April 22, 2020, to the complete deletion of that data by the Company on May 22, 2020, should be considered in its favor. Nevertheless, taking into account the nature and seriousness of the identified deficiencies, as well as the number of affected individuals whose data is concerned and the level of non-material damages they suffered, the criterion specified in Article 83(2)(a) of Regulation 2016/679 – assessed in a comprehensive manner – should be regarded as aggravating.

131. The intentional nature of the violation of the provisions of Regulation 2016/679 by the Company (Article 83(2)(b) of Regulation 2016/679) should be emphasized. In analyzing this criterion, the President of the UODO was also bound by the findings of the WSA and NSA contained in the judgments mentioned in points 11 and 12 of this decision, in accordance with Article 170 of the Administrative Procedure Code. In light of the above, considering the established factual findings, the President of the UODO concluded that the Company made the decision to submit a request to the Minister of Digital Affairs on April 20, 2020, for the provision of its personal data from the PESEL register, and subsequently processed that data, despite being aware of the risk of unlawfulness of those actions – which it accepted. It should be noted, in accordance with the position of the administrative courts expressed in the aforementioned judgments, that at the time the Company submitted its request for the transfer of voter data from the PESEL register, the tasks related to ensuring organizational, administrative, financial, and technical conditions associated with the organization and conduct of elections were the exclusive competence of the National Electoral Office. Although the provisions of the Act of April 6, 2020, on specific principles for conducting general elections for the President of the Republic of Poland scheduled for 2020 provided for the transfer of these tasks to the competence of the designated operator (i.e., the Company), it should be emphasized that this regulation came into force only on May 9, 2020 – which means that by obtaining voter data from the PESEL register, the Company acted outside the law. Additionally, Article 102(4) of the Act on Special Principles for Conducting Elections suspended the application of the provisions of the Electoral Code regarding, among other things, postal voting, as referred to in Article 53a of that Code, during the period of the state of epidemic threat or epidemic, in the context of conducting general elections for the President of the Republic of Poland in 2020. Thus, it should be noted that from April 18, 2020 (i.e., from the moment the provisions of Article 102 of the Act on Special Principles came into force) to May 9, 2020 (i.e., until the moment the Act on Specific Principles for Conducting General Elections for the President of the Republic of Poland scheduled for 2020 came into force), there were no statutory provisions enabling voting in these elections by postal means. The aforementioned circumstances were known to the Company. Firstly, the issue of the legality of conducting elections in the manner described above, as raising justified doubts, was commented on widely in the public space, making it impossible to assume that the Company – as an entity directly involved in the organization of these elections – was not interested in the development of current events. In particular, the Company, being the recipient of the PRM Decision of April 16, 2020, was to bear the first economic burden associated with the implementation of the task entrusted to it. The doubts of the Company regarding its lack of competence in the aforementioned context are evidenced by the fact that the Company commissioned the preparation of three legal opinions concerning the subject of the tasks and obligations as well as the responsibilities of the Members of the Company's Management Board in connection with the implementation of the directive contained in the PRM decision of April 16, 2020 (to which the supervisory authority already referred in point 89 of the justification). In this context, the content of the legal opinion dated April 23, 2020, prepared in the Legal and Ownership Supervision Office of PP S.A., is particularly significant for the assessment of this criterion, in which it was indicated that the Members of the Management Board had an obligation to act

diligently in a situation where the Act on Specific Principles for Conducting Elections had not yet been passed. Consequently, it was recommended, among other things, to conduct an analysis of the decision (...) regarding the justification for its appeal, particularly in the context of its compliance with the law. Given the aforementioned doubts expressed by the Company – undisputed in light of the fact that the Company chose to seek legal advice to resolve them – it is impossible to accept that the unlawful acquisition of voter data from the PESEL register was the result of an unintentional error by the Company regarding the legality of this processing.

132. Any relevant prior violations by the Company (Article 83(2)(e) of Regulation 2016/679) In deciding on the imposition and amount of the administrative fine imposed on the Company, the President of the UODO took into account, as an aggravating circumstance, the fact of the Company's prior violation of the provisions of Regulation 2016/679. In connection with the impact of complaints from individuals regarding irregularities in the processing of their personal data by the Company, the supervisory authority issued the following decisions against it: - a decision dated September 22, 2020, with reference number (...), stating a violation of Article 12(3) and (4) in conjunction with Article 15(1)(b) of Regulation 2016/679, - a decision dated January 11, 2021.

r. o ref. (...), confirming the violation of the provisions of Article 15(1)(c), Article 15(1)(h), and Article 15(3) of Regulation 2016/679, - decision of July 1, 2021, ref. (...), confirming the violation of the provisions of Article 6(1) of Regulation 2016/679, - decision of March 7, 2022, ref. (...), confirming the violation of the provisions of Article 6(1) of Regulation 2016/679, - decision of March 16, 2022, ref. (...), confirming the violation of the provisions of Article 6(1) of Regulation 2016/679, - decision of September 20, 2022, ref. (...), confirming the violation of the provisions of Article 6(1) of Regulation 2016/679, - decision of December 21, 2022, ref. (...), confirming the violation of the provisions of Article 6(1), Article 9(1), and Article 5(1)(a) of Regulation 2016/679, - decision of January 26, 2023, ref. (...), confirming the violation of the provisions of Article 5(1)(c) and Article 6(1) of Regulation 2016/679, - decision of February 2, 2023, ref. (...), confirming the violation of the provisions of Article 6(1) of Regulation 2016/679, - decision of February 2, 2023, ref. (...), confirming the violation of the provisions of Article 6(1) of Regulation 2016/679, - decision of June 29, 2023, ref. (...), confirming the violation of the provisions of Article 6(1) of Regulation 2016/679, - decision of December 28, 2023, ref. (...), confirming the violation of the provisions of Article 6(1) in conjunction with Article 5(1)(a) of Regulation 2016/679, - decision of March 25, 2024, ref. (...), confirming the violation of the provisions of Article 6(1) of Regulation 2016/679, - decision of July 10, 2024, ref. (...), confirming the violation of the provisions of Article 6(1) of Regulation 2016/679, - decision of September 12, 2024, ref. (...), confirming the violation of the provisions of Article 6(1) of Regulation 2016/679, - decision of November 27, 2024, ref. (...), confirming the violation of the provisions of Article 9(1) in conjunction with Article 5(1)(a) of Regulation 2016/679.

The aforementioned previous violations indicate the existence of serious problems within the Company's structures regarding the fulfillment of obligations arising from the provisions of Regulation 2016/679. The Company was unable to demonstrate the legality of processing or the proper execution of rights belonging to the data subjects in the aforementioned individual cases before the supervisory authority, which resulted in the application of appropriate remedial measures against it. However, it should be noted that the previously identified violations (related, among others, to faulty delivery of shipments or unlawful processing of employees' personal data) mostly arose due to human error and concerned the processing of personal data at the local level, and thus were in no way related to the actions of the Company subject to assessment in this proceeding. In light of the above, it is impossible to consider them as "appropriate" previous violations in the sense of Article 83(2)(e) of Regulation 2016/679. Nevertheless, taking into account the position of the EDPB, according to which "all previous violations may constitute information about the overall approach of the controller or processor to compliance with the GDPR" (see point 88 of Guidelines 04/2022), the President of the UODO considered the Company's previous stance—indicating existing difficulties in complying with data protection regulations—against it, concluding that the identified previous violations currently justify the imposition of an administrative fine on the Company. At the same time, however, the lack of a clear connection between the aforementioned complaint cases and the present case warranted recognizing

the analyzed premise as aggravating to a degree that did not significantly affect the amount of the imposed fine.

133. Categories of personal data to which the violation pertained (Article 83(2)(g) of Regulation 2016/679) Considering that a detailed assessment of the premise set out in Article 83(2)(g) of Regulation 2016/679 was conducted by the supervisory authority in part of the justification of this decision dedicated to the reasons for imposing and determining the amount of the administrative fine applied against the Minister of Digital Affairs (see point 112 of the justification), and at the same time, the scope of personal data obtained and processed by the Company in connection with the preparation for the conduct of the Presidential elections in the Republic of Poland in 2020 by correspondence fully overlaps with the scope of data provided from the PESEL register by the Minister of Digital Affairs, the President of the UODO—aiming to avoid unnecessary repetitions—refers to the analysis conducted therein. All arguments previously raised by the supervisory authority will indeed apply in relation to the violations attributed to the Company.

134. In determining the amount of the administrative fine, the President of the UODO took into account, for the benefit of the Company, within the framework of the premise concerning any other aggravating or mitigating factors applicable to the circumstances of the case (Article 83(2)(k) of Regulation 2016/679), the fact of the relatively quick removal of the state of violation of the provisions of Regulation 2016/679 by the Company. As established, the Company commenced on May 15, 2020, actions related to the irreversible deletion of all personal data provided to it by the Minister of Digital Affairs—which process it completed on May 22, 2020. The restoration of its lawful state thus occurred shortly after the cessation of the purpose that, in the Company's assessment, justified the acquisition of voters' personal data from the PESEL register (i.e., after the completion of the Company's preparations for the general elections of the President of the Republic of Poland scheduled for May 10, 2020). The deletion of data by the Company was an action entirely independent of the intervention of the supervisory authority, which argues for a reduction in the amount of the administrative fine imposed on the Company. However, the reduction made takes into account...

the circumstances surrounding the actions taken by the Company were not entirely spontaneous, but were related to the prior intervention of the Minister, who formally obligated the Company to submit a statement regarding the removal of the personal data provided to it and any copies thereof. The mentioned request for the Company to cease processing personal data obtained from the PESEL register—although it does not change the overall assessment of the analyzed premise, which undoubtedly should be classified as mitigating—suggests that it should be attributed less significance than it would have had if the Company had proceeded to remove the data on its own initiative.

135. Other circumstances indicated below, referred to in Article 83(2) of Regulation 2016/679, after assessing their impact on the identified violation in this case, were deemed neutral by the President of UODO, meaning they had neither an aggravating nor a mitigating effect on the amount of the imposed administrative monetary penalty.

136. Actions taken to minimize the damage suffered by the data subjects (Article 83(2)(c) of Regulation 2016/679) In the context of this premise, the purpose of the administrator's action is significant, namely to minimize the damage suffered by the data subjects. The President of UODO did not note any such actions taken by the Company in this case, which is why he assessed this premise as neutral. This assessment is not altered by the fact that the Company ultimately, i.e., after the cessation of the declared purpose for which it processed the personal data of voters obtained from the PESEL register, permanently deleted this data and all copies thereof. While the deletion of data may have alleviated the state of concern on the part of the data subjects, related to the loss of control over their personal data, the Company did not undertake any other actions that would directly aim to minimize the aforementioned damages. In light of the above, there are no grounds for evaluating the analyzed premise in any way other than as resulting from this decision.

137. The degree of responsibility considering the technical and organizational measures implemented by it under Articles 25 and 32 of Regulation 2016/679 (Article 83(2)(d) of Regulation 2016/679) Due to the nature of the violations of the provisions of Regulation 2016/679 identified in this case (processing

personal data from the PESEL register, despite the lack of a legal basis)—which violations are essentially not related to the technical and organizational measures applied by the administrator, but solely to the assessment of the correctness of the interpretation of the provisions legalizing the processing carried out by the Company—it should be accepted that the premise indicated in Article 83(2)(d) of Regulation 2016/679 has no aggravating or mitigating effect on the amount of the imposed administrative monetary penalty. It has no significance in assessing the Company's violation of the provisions of Article 5(1)(a) and Article 6(1) of Regulation 2016/679.

138. The degree of cooperation with the supervisory authority to remedy the violation and mitigate its potential negative effects (Article 83(2)(f) of Regulation 2016/679) The President of UODO indicates that at the time of initiating this administrative proceeding, the personal data obtained from the PESEL register was no longer processed by the Company. Consequently, at this stage, there is no possibility to assess the degree of the Company's cooperation with the President of UODO to remedy the violation and mitigate its potential negative effects. The fact that the Company voluntarily remedied the violation was, however, taken into account in its favor in the assessment of the premise specified in Article 83(2)(k) of Regulation 2016/679.

139. The manner in which the supervisory authority became aware of the violation, in particular, whether and to what extent the administrator or processor reported the violation (Article 83(2)(h) of Regulation 2016/679) The supervisory authority became aware of the violation by the Company of the provisions of Regulation 2016/679 as a result of numerous complaints received from individuals and information from publicly available media. Given that the reported unlawful behavior of the administrator does not constitute a "personal data breach" within the meaning of Article 4(12) of Regulation 2016/679—i.e., a security breach leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure, or unauthorized access to personal data transmitted, stored, or otherwise processed—the Company was not obliged to report it to the supervisory authority in the manner provided for in Article 33 of the discussed legal act. It should be noted that the provisions of Regulation 2016/679 do not impose a similar obligation on administrators in the event of a breach that does not result in a disruption of the security of the processed personal data, which could affect the confidentiality, integrity, or availability of that data. Thus, the manner in which the authority became aware of the violation should be assessed as a neutral fact, having no significance for the resolution of this decision.

140. If measures referred to in Article 58(2) have previously been applied to the administrator in the same matter—compliance with those measures (Article 83(2)(i) of Regulation 2016/679) Prior to issuing this decision, the President of UODO did not apply any of the measures listed in Article 58(2) of Regulation 2016/679 to the Company in the matter under consideration, which is why the Company had no obligation to take any actions related to their implementation, and such actions, subject to the assessment of the supervisory authority, could have had an aggravating or mitigating effect on the assessment.

****Determined Violation.****

141. The application of approved codes of conduct under Article 40 or approved certification mechanisms under Article 42 (Article 83(2)(j) of Regulation 2016/679) The Company, as of the date of the decision, did not apply approved codes of conduct or approved certification mechanisms referred to in the provisions of Regulation 2016/679. However, their adoption, implementation, and application are not – as stipulated by the provisions of Regulation 2016/679 – mandatory for controllers, which means that the circumstance of their non-application cannot be considered detrimental to the Company in this case. On the other hand, the circumstance of adopting and applying such instruments could be taken into account in favor of the Company as measures guaranteeing a higher than standard level of protection for personal data processing; however, such a circumstance did not occur in this case.

142. Financial benefits obtained directly or indirectly in connection with the violation or avoided losses (Article 83(2)(k) of Regulation 2016/679) During the proceedings, no impact of the violation of the provisions of Regulation 2016/679 on the Company achieving financial benefits or avoiding losses was

established. Therefore, there are no grounds to treat this circumstance as aggravating. The determination of measurable financial benefits resulting from the violation of the provisions of Regulation 2016/679 should be assessed very negatively. The Company's failure to achieve such benefits, as a natural state independent of the violation and its effects, is a circumstance that, by its very nature, cannot be mitigating. This interpretation is confirmed by the very wording of Article 83(2)(k) of Regulation 2016/679, which requires the supervisory authority to pay due attention to the benefits "obtained" – that is, those that occurred on the part of the entity committing the violation.

****Determining the Amount of the Fine Using Guidelines 04/2022****

143. In determining the amount of the administrative fine imposed on the Company in this case, the President of the UODO applied the methodology adopted by the EROD in Guidelines 04/2022. In accordance with the guidance presented in this document, the President of the UODO conducted the calculation process for the fine as outlined below.

144. As the basis for calculating the administrative fine, the President of the UODO accepted the Company's turnover for the year 2024 presented by it in the statement attached to the Company's letter dated February 6, 2025. According to this document, the Company's turnover in 2024 (in the "previous financial year") amounted to (...) PLN, which – when converted to euros (according to the average euro exchange rate on January 28, 2025 – 1 euro = 4.2092 PLN – adopted for this and for all other below currency conversions in accordance with Article 103 of the u.o.d.o.) – is equivalent to the amount of (...) euros. Additionally, from the financial report presented by the Company for the year 2023, also attached to the letter dated February 6, 2025, it follows that its turnover in that financial year amounted to 6,593,890,000 PLN, while in 2022 – 6,529,913,000 PLN.

145. The President of the UODO categorized the violation of the provisions of Regulation 2016/679 established in this case (see Chapter 4.1 of Guidelines 04/2022). Violations of Articles 5 and 6 of Regulation 2016/679 belong – according to Article 83(5)(a) of Regulation 2016/679 – to the category of violations subject to a higher penalty of the two dimensions of penalties provided for in Regulation 2016/679 (with a maximum amount of up to 20,000,000 EUR or up to 4% of the enterprise's turnover from the previous financial year). They are therefore in abstracto the "most serious" of the violations provided for in Regulation 2016/679; they are more serious than the second group of violations subject to administrative fines (indicated in Article 83(4) of Regulation 2016/679).

146. The President of the UODO determined the legally defined maximum amount of the fine that could be imposed on the Company in this case (for the violation of Article 6(1) and Article 5(1)(a) of Regulation 2016/679 assessed in this decision) – see Chapter 6.1 of Guidelines 04/2022. Article 83(5)(a) of Regulation 2016/679 obliges the President of the UODO to determine whether the so-called "static maximum amount" (20,000,000 euros) or the "dynamic maximum amount" (4% of the turnover from the previous financial year) will apply in the case, and to adopt the higher amount as the maximum that the imposed administrative fine cannot exceed. The value of 4% of the Company's turnover for the previous financial year is (...) PLN (equivalent to (...) euros). Since this amount is higher than the static maximum amount (20,000,000 euros), the President of the UODO is obliged to accept it as the maximum that the administrative fine imposed on the Company cannot exceed.

147. The President of the UODO assessed the violation established in this case as a violation of high severity (see Chapter 4.2 of Guidelines 04/2022). In this assessment, those factors among those listed in Article 83(2) of Regulation 2016/679 that pertain to the subject of the violation (constituting the "seriousness" of the violation) were taken into account, namely: the nature, gravity, and duration of the violation (Article 83(2)(a) of Regulation 2016/679), the intentional or unintentional nature of the violation (Article 83(2)(b) of Regulation 2016/679), and the categories of personal data to which the violation pertained (Article 83(2)(g) of Regulation 2016/679). A detailed assessment of these circumstances has been presented above (see points 130, 131, and 133 of the justification). At this point, it should only be noted that considering their cumulative impact on the assessment of the violation established in this case taken as a whole leads to the conclusion that the level of its seriousness (understood in accordance with Guidelines 04/2022)

is high. The consequence of this is the adoption – as the starting amount for calculating the penalty – of a value ranging from 20% to 100% of the maximum penalty that can be imposed on the Company

(see point 60, third indent of the Guidelines 04/2022), that is – considering the dynamic maximum amount established for the Company (see point 146 of the justification) – from the amount (...) PLN ((...) euros) to the amount (...) PLN ((...) euros). The President of the UODO considered the amount (...) PLN, equivalent to (...) euros ((...) % of the legally defined maximum penalty for the Company), to be adequate and justified by the circumstances of this case.

148. In accordance with the EROD's guidance presented in point 66, third indent of the Guidelines 04/2022 (referring to enterprises with an annual turnover of (...)), the President of the UODO did not find it justified to take advantage of the possibility of reducing the starting amount based on the assessment of the high seriousness of the violation, a possibility that these guidelines (in Chapter 4.3) provide for smaller enterprises with less economic power. The EROD indicates therein that in the case of (...).

149. The President of the UODO assessed the impact of other circumstances (besides those considered above in the assessment of the seriousness of the violation) indicated in Article 83(2) of Regulation 2016/679 (see Chapter 5 of the Guidelines 04/2022). These circumstances, which may have an aggravating or mitigating effect on the assessment of the violation, relate – as the Guidelines 04/2022 assume – to the subjective side of the violation, that is, to the entity itself that committed the violation and to its behavior before the violation, during it, and after it occurred, as well as possibly to other circumstances relevant to the case. A detailed assessment and justification of the impact of each of these premises on the assessment of the violation have been presented above (see points 132 and 134-142 of the justification). At this point, it should only be noted that two of them had – in the opinion of the President of the UODO – an impact on the amount of the imposed penalty. The President of the UODO considered that an aggravating circumstance for the Company (albeit to a small extent) is the previous violations of the provisions of Regulation 2016/679 identified by the President of the UODO (Article 83(2)(e) of Regulation 2016/679). On the other hand, a mitigating circumstance for the amount of the imposed penalty (and this – in the opinion of the President of the UODO – significantly) is the fact of the relatively quick removal of the violation by the Company (Article 83(2)(k) of Regulation 2016/679). The remaining premises from Article 83(2) (letters c), d), f), h), i), and j) of Regulation 2016/679) – as indicated above – had no mitigating or aggravating effect on the assessment of the violation and consequently on the amount of the penalty. Therefore, due to the occurrence of additional circumstances affecting the assessment of the violation, the President of the UODO deemed it justified to further adjust the amount of the penalty determined based on the assessment of the seriousness of the violation (see point 147 of the justification). In the opinion of the President of the UODO, the appropriate further reduction of the penalty amount due to the combined impact of both of these premises on the assessment of the violation is by (...) % – to the amount of (...) PLN, equivalent to (...) euros. Such a significant reduction in the amount of the penalty at this stage of its calculation is primarily the result of the President of the UODO taking into account the fact of the relatively quick removal of the violation by the Company. This action by the Company removed one of the objectives that the administrative monetary penalty is intended to serve – the necessity to restore compliance with the law.

150. Although the amount of the penalty determined in accordance with the above principles does not exceed the legally defined maximum penalty, the President of the UODO considered that it requires additional correction due to the principle of proportionality mentioned in Article 83(1) of Regulation 2016/679 as one of the three directives for determining the penalty (see Chapter 7 of the Guidelines 04/2022). Undoubtedly, a monetary penalty of (...) PLN would be an effective penalty (due to its severity, it would achieve its repressive goal, which is to punish for unlawful behavior) and deterrent (allowing effectively to discourage both the Company and other administrators from committing such serious violations of the provisions of Regulation 2016/679 in the future). However, a penalty of this amount would be – in the opinion of the President of the UODO – a disproportionate penalty due to its excessive severity. According to the Guidelines 2016/679, monetary penalties: first, “should not be disproportionate to the objectives they serve” (point 138), second, “should be proportionate to the violation assessed as a whole, taking into account especially the severity of the violation” (point 138),

and third, should be proportionate “to the size of the enterprise to which the entity that committed the violation belongs” (point 139). Additionally, however, the principle of proportionality “requires that the measures taken by the supervisory authority do not exceed what is appropriate and necessary to achieve legitimate objectives,” and “where there is a possibility of choosing from a greater number of appropriate solutions, the least burdensome should be applied, and the inconveniences resulting from this should not be excessive in relation to the intended objectives” (points 137 and 139). In other words, as is accepted in Polish doctrine, “[s]anction is proportional if it does not exceed the threshold of severity determined by taking into account the circumstances of the specific case”[15].

It should be noted that consideration for the least possible severity of the applied sanction – the last of the above-mentioned aspects of the principle of proportionality (and only this aspect) – argues in this case for reducing the amount of the penalty imposed on the Company. Weighing the impact on the amount of the penalty of the principle of proportionality (in all its aspects), while also simultaneously maintaining the effectiveness and deterrent nature of the penalty, that is, all the requirements indicated by the legislator.

the provisions of Article 83(1) of Regulation 2016/679 (which, it is worth emphasizing, are equivalent and equally significant to each other), the President of the Personal Data Protection Office (UODO) took into account the special status of the Company, the context of its operations as a designated operator, as well as its current financial situation resulting partly from this context and the regulatory environment in which it operates.

According to the financial report for 2023, submitted by the Company in the attachment to the letter dated February 6, 2025, it is evident that in 2022, the Company recorded a net loss of approximately PLN 5.7 million, while in 2023, the net loss amounted to approximately PLN 621 million. For 2024, the Company did not present a financial report to the President of UODO; as indicated by the Company, the financial data is currently under review by an auditor. However, from publicly available information presented by the Secretary of State in the Ministry of State Assets (thus, in the ministry overseeing the ownership supervision of the Company), it follows that in the first half of 2024, the Company's loss amounted to approximately PLN 315 million, while for the entire year of 2024 – approximately PLN 230 million. These figures undoubtedly indicate the poor financial situation of the Company. Such high losses of the Company are, among other things – as emphasized by a representative of the Ministry of State Assets – “the result not only of changes in the postal shipment market but also of years of neglect and poor management, which have led to the misalignment of the company's model with the current challenges of the postal market.” Therefore, their cause largely lies with the Company; they are not the result of extraordinary events occurring in the external environment of the Company. However, it should also be noted that the losses incurred by the Company also arise from reasons independent of the Company – they are related to the obligation to provide universal postal services, which are not subject to free market conditions. Their provision, including the determination of their price and the maintenance of necessary infrastructure, is strictly regulated by law and is subject to oversight by the Office of Electronic Communications, in order to ensure their availability, continuity, and affordability. The President of UODO is also aware that the delay in refinancing by the State Treasury of the net cost of the obligation to provide universal services incurred by the Company in the years 2021-2022, resulting from the necessity of notifying it (as public aid) to the European Commission and from the delay in the issuance of a decision by this body regarding the compliance of the refinancing of this cost with EU rules on granting public aid, had an impact on the Company's financial results during the discussed period. Ultimately, in 2024, the Company received an initial payment for financing the net cost of the obligation to provide universal services for the years 2021-2022 in the amount of approximately PLN 749 million, and the European Commission issued a decision in November of that year confirming the compliance of public aid consisting of financing this cost by the Polish state in the years 2021-2025 with EU law. This decision undoubtedly helped stabilize the Company's financial situation. Based on it, a total of approximately PLN 3.7 billion in financing from the State Treasury will be paid (PLN 749 million in 2024) or is to be paid to the Company in the coming years, including approximately PLN 963 million in 2025 for financing the net cost incurred for public services in 2023.

Analyzing the Company's financial situation in the context of assessing the severity of the penalty and its effects on the functioning of the Company, the President of UODO notes the current attempts to improve the Company's financial condition, expressed in the implementation of remedial actions within the Company, including: the adoption by the Company's management in August 2024 of the so-called Transformation Plan, the termination of the Company's Collective Labor Agreement effective February 28, 2025, the implementation of a Voluntary Departure Program for the Company's employees adopted by the Company's management resolution on January 7, 2025. These actions aim, among other things, to reduce the costs of operations conducted by the Company, including the reduction of costs ("optimization") of employment. Only within the framework of this last program, a reduction of approximately 8,500 positions is anticipated. All these actions of the Company, undoubtedly necessary and justified by its financial situation, may impact the Company's ability to fulfill its public tasks; they may be associated with the risk of lowering the quality of the universal postal services provided by it or disrupt the process of implementing the e-delivery system. The President of UODO is aware that imposing a penalty on the Company in this situation would be excessively burdensome and would be associated with the materialization of this risk, which would result in negative consequences for both individual citizens and entire areas of state functioning (public administration, justice system, defense, etc.). A penalty that does not take into account the circumstances presented above could also – by disrupting the Company's remedial processes – threaten its very existence, which – given the size of the Company – would be associated with negative consequences on a large scale in the social sphere.

In light of the above circumstances, the President of UODO concluded that a penalty in the amount of (...) PLN (taking into account the high severity of the violation, the size of the Company's enterprise, and all circumstances indicated in Article 83(2) of Regulation 2016/679, while also possessing undoubtedly the qualities of effectiveness and deterrence) would be excessively burdensome and thus inconsistent with the principle of proportionality. The depletion of the Company's financial resources by this amount during the remedial process (which in itself requires the investment of additional funds, including to finance the Voluntary Departure Program) could, in the opinion of the President of UODO, lead to the materialization of the aforementioned risks for the fulfillment of public tasks performed by the Company. Therefore, taking into account...

****Proportionality of the Imposed Penalty – President of UODO****

The President of UODO has further reduced the amount of the penalty by (...) % in relation to the amount obtained after considering additional circumstances that have an aggravating and mitigating effect on the determination of the penalty (see point 149 above), which amounts to 27,124,816 PLN (equivalent to 6,444,174 euros). In his opinion, such determination of the final amount of the imposed penalty will not affect its effectiveness and deterrent nature. This amount represents, in the opinion of the President of UODO, a certain threshold, above which any further increase in the penalty amount (and thus its severity) will not be associated with an increase in its effectiveness and deterrent nature. On the other hand, a greater reduction in the penalty amount could occur at the cost of its effectiveness, deterrent nature, and proportionality to the seriousness of the violation, as well as at the expense of the consistent application and enforcement of Regulation 2016/679 by European supervisory authorities and in violation of the principle of equal treatment of entities in the EU and EEA internal market. For such a large entity as the Company, with such enormous turnover and capacity to finance obligations (including the obligation arising from the penalty imposed by this decision), the penalty in the above amount will, in the opinion of the President of UODO, be payable without excessive detriment to its functioning and to the fulfillment of tasks arising from its status as a designated operator. It constitutes only (...) % of the revenues achieved by the Company in 2024. At the same time, its amount is only about (...) % of the legally defined maximum penalty amount threatening the Company for the violation of the provisions of Regulation 2016/679 it has committed. It is also worth noting that the amount of the penalty imposed on the Company is small in relation to the financial transfers between the state budget and the Company solely for the financing of the net cost of the universal service obligation; it constitutes only 2.8% of the amount that the Company has already received in this regard in 2025 (963 million PLN covering the costs incurred in 2023).

151. The President of UODO stated that the amount of the administrative monetary penalty established in the manner presented above does not exceed – in accordance with Article 83(3) of Regulation 2016/679 – the legally defined maximum penalty amount provided for the most serious violation (see Chapter 6 of Guidelines 04/2022). The violations identified in this case of both provisions of Regulation 2016/679 (Article 5 and Article 6) are subject to the same penalty of up to 4% of the Company's annual turnover from the previous financial year; these violations should therefore be considered as having the same seriousness in the meaning of Article 83(3) of Regulation 2016/679. As indicated above, the "dynamic maximum amount" applicable in this case concerning the Company is the amount (...) PLN (equivalent to (...) euros) – see point 146 of the justification. The amount of the penalty determined in the manner presented in the above points for the violations of both provisions of Regulation 2016/679 – 27,124,816 PLN (equivalent to 6,444,174 euros) – obviously does not exceed the "dynamic maximum amount" defined for each of the considered violations separately ("does not exceed the penalty for the most serious violation" – in accordance with the literal wording of Article 83(3) of Regulation 2016/679).

****V.D. Summary****

152. Taking into account the established factual circumstances and legal conditions, the President of UODO – for the violations of Article 5(1)(a) and Article 6(1) of Regulation 2016/679 attributed in this proceeding to both administrators – imposed administrative monetary penalties on them. The penalty of 100,000 PLN applied to the Minister of Digital Affairs was imposed on him based on Article 83(5)(a) in connection with Article 83(3) of Regulation 2016/679 and Article 102(1)(1) and (3) of the Act on the Protection of Personal Data. On the other hand, the administrative monetary penalty in the amount of 27,124,816 PLN (equivalent to 6,444,174 euros) imposed on Poczta Polska S.A. was imposed on the Company based on Article 83(5)(a) in connection with Article 83(3) of Regulation 2016/679.

153. In the opinion of the President of UODO, the aforementioned financial sanctions fulfill the punitive functions defined in Article 83(1) of Regulation 2016/679 and represent a possibly adequate, and above all, fair response of the supervisory authority to the identified violations of the provisions of Regulation 2016/679. The imposition of administrative monetary penalties in the amounts determined by the supervisory authority is necessary and justified by the nature, severity, and other circumstances of the case that the supervisory authority considered as aggravating in the context of the violations attributed to both the Minister and the Company. At the same time, the President of UODO notes that the application of any other corrective measure provided for in Article 58(2) of Regulation 2016/679 against the aforementioned administrators, particularly merely issuing a reprimand (Article 58(2)(b) of Regulation 2016/679), would not be proportional to the identified irregularities in the personal data processing process and would not guarantee that these administrators would not commit further negligence in the future.

[1] See: - Announcement of the National Electoral Commission of February 6, 2020, on the number of voters registered in the electoral registers (M. P. 2020, item 167), - data on the number of eligible voters in the Presidential elections in the Republic of Poland, which took place on June 28, 2020, (...) - (...)

[2] Act of August 30, 2002, Law on Proceedings Before Administrative Courts (Journal of Laws of 2024, item 935, as amended), hereinafter referred to as "p.p.s.a."

[3] Act of June 14, 1960, Code of Administrative Procedure (Journal of Laws of 2024, item 572), hereinafter referred to as...

further: "Administrative Procedure Code" or "k.p.a."; Article 189g § 1 of this Act states: "An administrative monetary penalty may not be imposed if five years have elapsed from the date of the violation of law or the occurrence of the effects of the violation of law." [4] According to the decision of the President of the Office of Electronic Communications dated June 30, 2015, reference number: DRP.WKP.710.2.2015.26, the Company was selected as the designated operator to provide universal services for the years 2016-2025 - see: (...) [5] See also: (...) [6] The Act of September 24, 2010 on the registration of the population – in the wording in force on the date of making the relevant personal data available (i.e., April 22, 2020), hereinafter referred to as: "the Population Registration Act." [7]

Guidelines 07/2020 of the European Data Protection Board regarding the concepts of the controller and the processor contained in the GDPR, version 2.0, adopted on July 7, 2021, hereinafter referred to as: "Guidelines 7/2020." [8] The Act of June 26, 1974 - Labor Code (Journal of Laws of 2025, item 277), hereinafter referred to as: "Labor Code." [9] B. Adamiak, [in:] B. Adamiak, J. Borkowski, Administrative Procedure Code. Commentary, Warsaw 2004, p. 371. [10] See the judgment of the Supreme Administrative Court dated August 4, 2017, case reference I OSK 1607/16, LEX no. 2345355, as well as A. Wróbel [in:] M. Jaśkowska, M. Wilbrandt-Gotowicz, A. Wróbel, Updated Commentary to the Administrative Procedure Code, LEX/el. 2025, Article 78, along with the cited E. Iserzon, Commentary, 1970, p. 166. [11] See: Information dated April 23, 2021, on the results of the audit conducted by the Supreme Audit Office regarding the actions of selected entities in connection with the preparation for the general elections for the President of the Republic of Poland scheduled for May 10, 2020, using postal voting, pp. 41-42 (...). [12] See: Statistical Yearbook of the Republic of Poland 2021, prepared by the Central Statistical Office, p. 207 (...). [13] See: information available on the website of the Sejm of the Republic of Poland regarding vote no. 43 at the 9th session of the Sejm of the Republic of Poland (...). [14] See: Statistical Yearbook of the Republic of Poland 2021, prepared by the Central Statistical Office (...). [15] Commentary on Article 83 [in:] P. Litwiński (ed.) General Data Protection Regulation. Personal Data Protection Act. Selected sectoral provisions. Commentary. Commentary on Article 83. Legalis. [16] See the record of the proceedings of the Permanent Subcommittee on Construction, Spatial Economy and Housing and Postal Services (no. 9) dated January 22, 2025 (p. 4) – available at (...). [17] See the Stenographic Report from the 29th Session of the Sejm of the Republic of Poland on February 21, 2025 (second day of the session) (p. 230) – available at (...). [18] Ibid. [19] See the announcements available at the addresses (...) and (...) [20] See the announcement of the Company available at the address (...) [21] See the announcement of the OM NSZZ Employees of the Polish Post available at the address (...) [22] See the announcement of the Company available at the address (...) [23] See the Stenographic Report from the 29th Session of the Sejm of the Republic of Poland on February 21, 2025 (second day of the session) (p. 231) – available at (...). [24] See the announcement of the Ministry of State Assets available at the address (...)

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